

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**DECLARATION OF MATTHEW J. REYNOLDS IN SUPPORT OF
COMPLAINANT’S MOTION TO COMPEL DISCOVERY FROM
RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

I, Matthew J. Reynolds, hereby declare as follows:

1. I am a partner at Huth Reynolds LLP, counsel for Complainant MCS Industries, Inc. (“Complainant”) in the above-captioned litigation matter.

2. I am a member in good standing of the Bars of New York, Virginia, and the District of Columbia and have filed an appearance in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. I submit this Declaration in support of Complainant’s Motion (the “Motion”) to Compel Discovery from Respondent MSC Mediterranean Shipping Company SA (“Respondent”). This Declaration is submitted simultaneously with the Motion.

5. On September 24, 2021, I served on Respondent’s counsel Complainant’s First Request for Production of Documents and Electronically Stored Information to Respondent (the “MCS RFPs”). A true and correct copy of the MCS RFPs, including my certificate of service that accompanied the MCS RFPs, is included as Exhibit 1 hereto.

6. On October 7, 2021, I served on Respondent's counsel Complainant's First Interrogatories to Respondent (the "MCS Interrogatories"). A true and correct copy of the MCS Interrogatories, including my certificate of service that accompanied the MCS Interrogatories, is included as Exhibit 2 hereto.

7. On October 25, 2021, Respondent's counsel served on me its Responses and Objections to Complainant's First Set of Document Requests (the "RFP Objections"). A true and correct copy of that document is included as Exhibit 3 hereto.

8. On November 8, 2021, Respondent's counsel served on me its Objections to Complainant's First Set of Interrogatories on Complainant (the "Interrogatory Objections"). A true and correct copy of that document is included as Exhibit 4 hereto.

9. On October 5, 2021, counsel for Complainant and Respondent conducted a teleconference to confer on their anticipated objections to their respective discovery requests.

10. On October 6, 2021, I sent a letter to Respondent's counsel memorializing the October 5, 2021 teleconference. A true and correct copy of that letter is included as Exhibit 5 hereto.

11. On October 7, 2021, Respondent's counsel sent a letter to me responding to my October 6, 2021 letter and attaching a copy of a confidentiality order entered in another Federal Maritime Commission proceeding. A true and correct copy of those documents are included as Exhibit 6 hereto.

12. On October 7, 2021, I sent a letter to Respondent's counsel responding to his October 7, 2021 letter. A true and correct copy of that letter, excluding the discovery documents that it enclosed consistent with Your Honor's August 4, 2021 Initial Order and 46 C.F.R. § 502.2(k), is included as Exhibit 7 hereto.

13. On October 13, 2021, Respondent's counsel sent a letter to me responding to my October 7, 2021 letter. A true and correct copy of that letter is included as Exhibit 8 hereto.

14. On October 18, 2021, I sent a letter to Respondent's counsel responding to his October 13, 2021 letter. A true and correct copy of that letter is included as Exhibit 9 hereto.

15. On October 20, 2021, Respondent's counsel sent a letter to me responding to my October 18, 2021 letter. A true and correct copy of that letter is included as Exhibit 10 hereto.

16. On October 28, 2021, I sent a letter to Respondent's counsel discussing Respondent's RFP Objections and requesting a further teleconference to discuss them and the scope of its production. A true and correct copy of that letter is included as Exhibit 11 hereto.

17. On November 2, 2021, counsel for Complainant and Respondent again conducted a teleconference, conferring on the MCS RFPs and Respondent's RFP Objections, including the possibility that Respondent's then-forthcoming responses to the MCS Interrogatories might address or effectively moot certain of the RFP Objections.

18. On November 3, 2021, I sent a letter to Respondent's counsel memorializing the November 2, 2021 teleconference. A true and correct copy of that letter is included as Exhibit 12 hereto.

19. On the basis of the foregoing, I certify that Complainant's counsel has conferred in good faith with Respondent's counsel in an effort to obtain Respondent's compliance with Complainant's discovery requests without the necessity of a motion, but after the two teleconferences and extensive correspondence discussed above and included as exhibits hereto, and in light of Respondent's Interrogatory Objections, I believe the parties are at an impasse.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: November 22, 2021

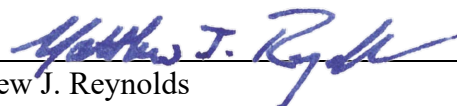

Matthew J. Reynolds

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2	Complainant MCS Industries, Inc.'s First Interrogatories to Respondent MSC Mediterranean Shipping Company SA
3	Respondent MSC Mediterranean Shipping Company S.A.'s Responses and Objections to Complainant's First Set of Document Requests
4	Respondent MSC Mediterranean Shipping Company S.A.'s Objections to Complainant's First Set of Document Requests
5	October 6, 2021 Letter from Matthew Reynolds to John Longstreth
6	October 7, 2021 Letter from John Longstreth to Matthew Reynolds with enclosed Exhibit A (Stipulation & Second Amended Order of Confidentiality)
7	October 7, 2021 Letter from Matthew Reynolds to John Longstreth, excluding enclosures pursuant to the August 4, 2021 Initial Order and 46 C.F.R. § 502.2(k)
8	October 13, 2021 Letter from John Longstreth to Matthew Reynolds
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EXHIBIT 1

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S FIRST REQUEST FOR PRODUCTION
OF DOCUMENTS AND ELECTRONICALLY STORED INFORMATION TO
RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

Pursuant to Title 46 of the Code of Federal Regulations, Section 502.146 *et seq.*, Complainant MCS Industries, Inc. (“MCS”), by and through its undersigned attorneys, hereby requests that Respondent MSC Mediterranean Shipping Company SA (“MSC”) produce to MCS no later than November 5, 2021 the documents and electronically stored information requested in the Requests for Production listed below (the “Discovery Requests”).

DEFINITIONS

1. The term “communication” means the transmittal of information (in the form of facts, ideas, inquiries or otherwise).
2. The term “document” is defined to be synonymous in meaning and equal in scope to the usage of the term “documents or electronically stored information” in 46 C.F.R. § 502.146(A)(1)(i). A draft or non-identical copy is a separate document within the meaning of this term.
3. When referring to a person, “to identify” means to give, to the extent known, the person’s full name, present or last known address, telephone number, and email address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this paragraph, only the name of that person need be listed in response to subsequent discovery requesting the identification of that person.
4. When referring to documents, “to identify” means to give, to the extent known, the (i) type of document; (ii) general subject matter; (iii) date of the document; and (iv) author(s), addressee(s) and recipient(s).
5. The term “person” is defined as any natural person or any legal entity, including, without limitation, any business or governmental entity or association.

6. The term “concerning” means relating to, referring to, with respect to, with regard to, describing, evidencing, or constituting.

7. The terms “You” and “Your” shall mean Respondent MSC and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of Respondent MSC.

8. The term “Shipping Act” shall mean the United States Shipping Act of 1984, as amended, including by the United States Ocean Shipping Reform Act of 1998.

9. The term “Service Contract” shall have the meaning ascribed to it by 46 U.S.C. § 40102(21) and 46 C.F.R. § 530.3(q).

10. The term “Shipper” shall have the meaning ascribed to it by 46 U.S.C. § 40102(23) and 46 C.F.R. § 530.3(r).

11. The term “OCA” shall mean that certain Ocean Carrier Agreement between MSC and MCS, Contract Number 21-104TPC, including all exhibits, attachments, appendices, and rate agreements attached thereto.

12. The term “MQC” shall have the meaning ascribed to it in Section 4.1 of the OCA and Appendix II thereto.

13. The term “MCS Cargo” shall mean any shipment or cargo owned by MCS, for which transportation by You was or is sought for the account of MCS, that was or is to be delivered to MCS, or for which notice of MCS’s space requirements was provided to You.

14. All other capitalized terms not defined herein shall have the meanings ascribed to them in the OCA.

15. The term “Expeditors” shall mean Expeditors International of Washington, Inc. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Expeditors International of Washington, Inc.

16. The term “Smart” shall mean Shandong Smart International Logistics Co., Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Shandong Smart International Logistics Co., Ltd.

17. The term “JMS” shall mean Qingdao JET Marine Logistics Co., Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Qingdao JET Marine Logistics Co., Ltd.

18. The term “Penavico” shall mean PENAVIDEO, the China People’s Navigation Company, or the China Ocean Shipping Agency Co., Ltd., and all parents, subsidiaries, affiliates,

predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of PENAVICO, the China People's Navigation Company, or the China Ocean Shipping Agency Co., Ltd.

19. The term "Port-Town" shall mean Fuzhou Port-Town International Shipping Agency, Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Port-Town International Shipping Agency.

20. The term "Intermediaries" shall mean any and all of Expeditors, Smart, JMS, Penavico, Port-Town, and Fuzhou Liansheng freight forwarding, including Holly Hai, Jeff Du, Agnes Ye, Ty "Summer" Li, Xiaotong "Lemon" Liu, Terry Zhang, Li Nan, Jie Li, and Jerry Jiang.

INSTRUCTIONS

1. Unless otherwise specified, these Discovery Requests seek documents, communications, and/or information from on or after January 1, 2021.

2. The following rules of construction also apply to all Discovery Requests:

- a. The terms "all," "any," and "each" shall each be construed as encompassing any and all.
- b. The connectives "and" and "or" shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.
- c. The use of the singular form of any word includes the plural and vice versa.
- d. The masculine gender of any word used herein includes the feminine, and vice versa.
- e. The word "including" shall mean "including without limitation."
- f. The use of a verb in any tense, mood, or voice shall be construed as the use of the verb in all tenses, moods, or voices, as necessary to bring within the scope of a Discovery Request all information that might otherwise be construed to be outside of its scope.

3. All electronically stored information ("ESI") responsive to these Discovery Requests shall be produced both in native format and as sequentially Bates numbered single-page images (black and white TIF files for ESI files that originally appeared in black and white and color JPG files for ESI files that originally contained color), except for Excel worksheets and any other ESI files that are unreadable as TIF files, which shall be produced in native format with placeholder TIF files. Each native-format ESI file produced shall be named per the Bates number of the first page of the corresponding TIF or JPG image(s) for that ESI file (i.e., its "BegNo"). Document-level extracted text or optical character recognition ("OCR") text shall be provided for each ESI file produced, also named per the ESI file's production BegNo. Concordance load files

containing at least the following metadata for each ESI file produced shall be included with the production: BegNo, EndNo, BegAttach, EndAttach, PgCount, Custodian, From, To, Cc, Bcc, Email Subject, Date Sent, Date Received, Time Sent, Time Received, File Extension, Author, Company, Date Created, Date Last Modified, File Name, Original File Path, File Size, and MD5 Hash.

4. If You consider any document, communication, and/or information requested by any of these Discovery Requests to be subject to withholding from production due to the attorney-client privilege, the attorney work product doctrine, any joint defense or common interest privilege, or any other privilege, then Plaintiff requests that You provide for each such document, communication, and/or piece of information identifying information sufficient to show for each document the author(s)/sender(s), recipient(s), date(s), subject line or title, and description of the privilege that You contend applies.

REQUESTS FOR PRODUCTION

1. A complete, fully executed copy of the OCA, including all exhibits, attachments, appendices, and rate agreements attached to the OCA.

2. All documents and communications concerning the OCA, any exhibit, attachment, or appendix to the OCA, or any rate agreement attached to the OCA, including the drafting, negotiation, and execution of the OCA or any exhibit, attachment, appendix, or rate agreement to the OCA.

3. All documents and communications concerning any adjustments to the Rates and Charges under the OCA.

4. All documents and communications concerning the MQC, including the negotiation of the MQC.

5. All documents and communications with MCS.

6. All documents and communications with any person or entity concerning MCS or MCS Cargo, including any of the Intermediaries.

7. All documents and communications concerning MCS or MCS Cargo.

8. All documents and communications concerning any booking or attempted booking of transportation by You of MCS Cargo, including Your acceptance or rejection of each such booking or attempted booking and the reasons therefor.

9. All documents and communications concerning the tender to You of any MCS Cargo.

10. All documents and communications concerning any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA, including the date each such notice was sent to You, the date each such notice was received by You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each

such notice was sent to You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was received by You, and the actual sailing date of Your vessel for which each such notice was provided.

11. All documents and communications concerning any MCS Cargo accepted by You for transportation.

12. All documents and communications concerning transportation provided by You of MCS Cargo.

13. All documents and communications concerning any MCS Cargo not accepted by You for transportation, including the reasons therefor.

14. All documents and communications concerning any Force Majeure event affecting the OCA or Your obligations or performance under the OCA, including any notice or notification of any Force Majeure event pursuant to the OCA.

15. All documents and communications concerning any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

16. Documents sufficient to show the total cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

17. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the date of each such booking or attempted booking.

18. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the scheduled vessel sailing date associated with each such booking or attempted booking.

19. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the actual vessel sailing date associated with each such booking or attempted booking.

20. Documents sufficient to show the respective totals of cargo (in TEUs or FEUs) transported by You on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, that were (a) tendered to You pursuant

to any Service Contract with any Shipper, or (b) transported by You not pursuant to any Service Contract with any Shipper.

21. Documents sufficient to show the prices charged for transportation by You of cargo pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

22. Documents sufficient to show the prices charged for transportation by You of cargo not pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

23. Documents sufficient to show any sailing of any vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

24. All documents and communications concerning any vessel or sailing offered by You to MCS as an alternative to any booking or attempted booking by MCS or any other person of transportation by You of MCS Cargo, or any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

25. All documents and communications concerning Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

26. Documents sufficient to identify all persons who communicated on Your behalf with MCS or any other person acting on MCS's behalf concerning MCS Cargo.

27. Documents sufficient to identify all persons who communicated on MCS's behalf with You or any other person acting on Your behalf concerning MCS Cargo.

28. Documents sufficient to identify all persons who participated in the drafting, negotiation, execution, and administration of the OCA.

29. Documents sufficient to identify all persons who receive on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under any Service Contract with You.

30. Documents sufficient to identify all persons who allocate cargo space on any sailings of Your vessels for routes covered by the OCA.

31. Copies of Your financial statements (audited, if available) for the periods January 1, 2019 through the present, including Your balance sheet(s) or equivalent(s), income statement(s) or equivalent(s), cash flow statement(s) or equivalent(s), and statements of shareholders' equity or equivalent(s).

32. Documents sufficient to show Your financial performance from January 1, 2019 through the present, including Your quarterly and annual sales, gross revenues, net revenues, gross margin, gross profits or losses, operating profits or losses, and net profits or losses.

33. Documents sufficient to show the effect of any force majeure event on Your financial performance from January 1, 2020 through the present.

34. Documents sufficient to show Your ownership and ownership structure from January 1, 2019 through the present.

35. Documents sufficient to show Your current assets, including any insurance policies available to cover reparations, fees, or costs awarded in this action.

36. Documents sufficient to show Your policies, procedures, and/or practices concerning the retention or destruction of documents and communications, including emails.

37. Documents sufficient to show Your retention or destruction of documents and communications concerning this action, including any notice to preserve such evidence.

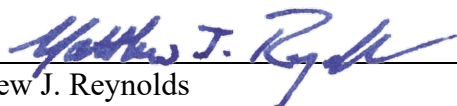
38. All documents and communications concerning this action, or any claims or defenses in this action.

39. All documents and communications, regardless of date, concerning any instances in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

40. All documents and communications that You intend to rely upon in this action or introduce at hearings or at trial in this action.

Dated: September 24, 2021

HUTH REYNOLDS LLP


Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Sara G. Wilcox
(415) 676-1773
swilcox@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

Counsel for Complainant MCS Industries, Inc.

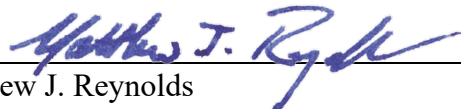
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent MSC Mediterranean Shipping Company SA by emailing a copy to its counsel of record listed below:

Michael F. Scanlon
John Longstreth
Ifigeneia Xanthopoulou
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
ifigeneia.xanthopoulou@klgates.com

Counsel for Respondent MSC Mediterranean Shipping Company SA

Dated: September 24, 2021



Matthew J. Reynolds
For Complainant MCS Industries, Inc.

EXHIBIT 2

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S FIRST INTERROGATORIES TO
RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

Pursuant to Title 46 of the Code of Federal Regulations, Section 502.145 *et seq.* and Rule 206 of the Commission's Rules of Practice and Procedure, Complainant MCS Industries, Inc. ("MCS"), by and through its undersigned attorneys, hereby requests that Respondent MSC Mediterranean Shipping Company SA ("MSC") answer separately and fully in writing, under oath, each of the following interrogatories (each, an "Interrogatory" and, collectively with the definitions and instructions herein, the "Interrogatories") within thirty (30) days after the date of service.

DEFINITIONS

1. The term "communication" means the transmittal of information (in the form of facts, ideas, inquiries or otherwise).
2. The term "document" is defined to be synonymous in meaning and equal in scope to the usage of the term "documents or electronically stored information" in 46 C.F.R. § 502.146(A)(1)(i). A draft or non-identical copy is a separate document within the meaning of this term.
3. When referring to a person, to "identify" or "identity" means to give, to the extent known, the person's full name, present or last known address, telephone number, and email address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this paragraph, only the name of that person need be listed in response to any subsequent Interrogatory requesting the identification of that person.
4. When referring to documents, to "identify" or "identity" means to give, to the extent known, the (i) type of document; (ii) general subject matter; (iii) date of the document; and (iv) author(s), addressee(s) and recipient(s).

5. The term “person” is defined as any natural person or any legal entity, including, without limitation, any business or governmental entity or association.

6. The term “concerning” means relating to, referring to, with respect to, with regard to, describing, evidencing, or constituting.

7. The terms “You” and “Your” shall mean Respondent MSC and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of Respondent MSC.

8. The term “Shipping Act” shall mean the United States Shipping Act of 1984, as amended, including by the United States Ocean Shipping Reform Act of 1998.

9. The term “Service Contract” shall have the meaning ascribed to it by 46 U.S.C. § 40102(21) and 46 C.F.R. § 530.3(q).

10. The term “Shipper” shall have the meaning ascribed to it by 46 U.S.C. § 40102(23) and 46 C.F.R. § 530.3(r).

11. The term “OCA” shall mean that certain Ocean Carrier Agreement between MSC and MCS, Contract Number 21-104TPC, including all exhibits, attachments, appendices, and rate agreements attached thereto.

12. The term “MQC” shall have the meaning ascribed to it in Section 4.1 of the OCA and Appendix II thereto.

13. The term “MCS Cargo” shall mean any shipment or cargo owned by MCS, for which transportation by You was or is sought for the account of MCS, that was or is to be delivered to MCS, or for which notice of MCS’s space requirements was provided to You.

14. All other capitalized terms not defined herein shall have the meanings ascribed to them in the OCA.

15. The term “Expeditors” shall mean Expeditors International of Washington, Inc. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Expeditors International of Washington, Inc.

16. The term “Smart” shall mean Shandong Smart International Logistics Co., Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Shandong Smart International Logistics Co., Ltd.

17. The term “JMS” shall mean Qingdao JET Marine Logistics Co., Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Qingdao JET Marine Logistics Co., Ltd.

18. The term “Penavico” shall mean PENA VICO, the China People’s Navigation Company, or the China Ocean Shipping Agency Co., Ltd., and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of PENA VICO, the China People’s Navigation Company, or the China Ocean Shipping Agency Co., Ltd.

19. The term “Port-Town” shall mean Fuzhou Port-Town International Shipping Agency, Ltd. and all parents, subsidiaries, affiliates, predecessors, successors, joint venture partners, officers, directors, executives, managers, employees, agents, charterers, and representatives of Port-Town International Shipping Agency.

20. The term “Intermediaries” shall mean any and all of Expeditors, Smart, JMS, Penavico, Port-Town, and Fuzhou Liansheng freight forwarding, including Holly Hai, Jeff Du, Agnes Ye, Ty “Summer” Li, Xiaotong “Lemon” Liu, Terry Zhang, Li Nan, Jie Li, and Jerry Jiang.

INSTRUCTIONS

1. Unless otherwise specified, these Interrogatories seek documents, communications, and/or information from on or after January 1, 2021.

2. The following rules of construction also apply to all Interrogatories:

- a. The terms “all,” “any,” and “each” shall each be construed as encompassing any and all.
- b. The connectives “and” and “or” shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the Interrogatory all responses that might otherwise be construed to be outside of its scope.
- c. The use of the singular form of any word includes the plural and vice versa.
- d. The masculine gender of any word used herein includes the feminine, and vice versa.
- e. The word “including” shall mean “including without limitation.”
- f. The use of a verb in any tense, mood, or voice shall be construed as the use of the verb in all tenses, moods, or voices, as necessary to bring within the scope of an Interrogatory all information that might otherwise be construed to be outside of its scope.

3. If You consider any document, communication, and/or information requested by any of these Interrogatories to be subject to withholding from production due to the attorney-client privilege, the attorney work product doctrine, any joint defense or common interest privilege, or any other privilege, then Plaintiff requests that You provide for each such document, communication, and/or piece of information identifying information sufficient to show for each document the author(s)/sender(s), recipient(s), date(s), subject line or title, and description of the privilege that You contend applies.

4. If it is not possible to answer an Interrogatory, or any subpart thereof, in full after exercising due diligence to secure the information to do so or if an objection is made to any one or subpart, explicitly so state listing the reason for any objections. Answer every other Interrogatory or subpart, and provide any information in Your possession that may partially answer the Interrogatory that You cannot answer in full.

5. These Interrogatories are continuing in nature, requiring that You file supplementary or additional answers if, subsequent to providing such answers, there are (a) any changed, different, or added fact, condition or circumstance which pertains or relates to any Interrogatory herein or Your answer thereto; or (b) You acquire any knowledge concerning additional witness or persons or entities which possess knowledge or information requested.

INTERROGATORIES

1. Identify each person from whom/which You obtained information in order to answer these Interrogatories.

2. Identify each document You referred to in order to respond to these Interrogatories.

3. Identify each person with knowledge of the facts underlying MCS's claims against You and/or Your defenses to MCS's claims.

4. Identify each person who/that participated on Your behalf in the drafting, negotiation, execution, and administration of the OCA, including the OCA's MQC.

5. Identify each person who/that acted on Your behalf concerning MCS or MCS Cargo.

6. Identify each person who/that communicated with MCS or any of the Intermediaries concerning MCS or MCS Cargo.

7. Identify each person who/that received or receives on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under the OCA.

8. Identify each instance in which You contend that MCS, in an untimely or otherwise improper fashion, requested space for any MCS Cargo or shipment on any MSC sailing, provided notice of its space requirements for shipments to be tendered under the OCA, and/or tendered any MCS Cargo or shipment under the OCA, including the following information for each such instance:

- a. the date and means of the request/tender,
- b. the date and means of Your response to the request/tender,
- c. the reason(s) You considered the request/tender to be untimely or improper, and

- d. identify all persons with knowledge of the matters requested in this Interrogatory.

9. Identify any Force Majeure event that You contend affected the OCA or MSC's obligations or performance under the OCA, including the date and manner of any notice or notification of any Force Majeure event pursuant to the OCA.

10. Identify any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

11. Identify each person with knowledge of Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

12. Identify each person who/that allocates cargo space on any sailings of Your vessels for routes covered by the OCA.

13. Identify each person with knowledge of Your financial performance from January 1, 2019 through the present, including the effects of the global COVID-19 pandemic and any force majeure event on Your financial performance.

14. Identify each insurance policy available to cover reparations, fees, or costs awarded in this action, including the insurance carrier, effective date(s) of the policy, policy number, and coverage limits.

15. Identify each instance, regardless of date, in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

16. Identify each fact witness You expect to submit testimony on Your behalf in this proceeding and state the subject matter and the substance of the facts regarding which the witness is expected to testify.

17. Identify any planned sailing of any of Your vessels on any of the routes covered by the OCA that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

18. For each sailing on which You transported cargo or shipment(s) for any Shipper from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, identify the vessel that made such sailing and provide the following information in the format provided in the Appendix hereto:

- a. State the date of departure from the respective loading port (i.e., Qingdao or Tianjin) for such sailing;
- b. State the date of arrival at the discharge port (i.e., Los Angeles) for such sailing;

- c. State the total cargo capacity (in TEUs or FEUs) of the vessel that made such sailing;
- d. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of seven days prior to such vessel's cut-off date;
- e. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's scheduled sailing date;
- f. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's actual sailing date;
- g. Identify each Shipper whose cargo or shipment was carried on such sailing;
- h. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing;
- i. For each Shipper so identified, state the date(s) on which such Shipper booked the space for its cargo carried on such sailing;
- j. For each Shipper so identified, state that Shipper's total contractual minimum quantity commitment with MSC, if any;
- k. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing not pursuant to any Service Contract; and
- l. For each Shipper so identified, state the price(s) charged for transportation by You of that Shipper's cargo or shipment on such sailing.

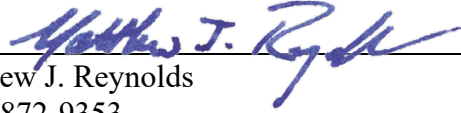
19. For each of the dates listed below, identify each MSC vessel that was, as of each such date, scheduled for a future sailing from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, and, for each such vessel, state its total cargo capacity (in TEUs or FEUs), the total cargo capacity (in TEUs or FEUs) that was unbooked or available on such vessel as of each such date, and the scheduled date(s) of departure from the respective loading port (i.e., Qingdao or Tianjin) for such future sailing(s):

- a. April 8, 2021;
- b. April 29, 2021;
- c. May 8, 2021;
- d. May 12, 2021;

- e. May 24, 2021;
- f. July 2, 2021;
- g. July 7, 2021;
- h. July 8, 2021;
- i. July 21, 2021;
- j. August 4, 2021;
- k. August 12, 2021; and
- l. September 20, 2021.

Dated: October 7, 2021

HUTH REYNOLDS LLP



Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Sara G. Wilcox
(415) 676-1773
swilcox@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

Counsel for Complainant MCS Industries, Inc.

APPENDIX – FORMAT FOR RESPONSE TO INTERROGATORY 18

MSC Mediterranean Shipping Company SA's Response to MCS Industries, Inc's Interrogatory 18

**MSC Sailings from Qingdao, China to Los Angeles, California, USA May 1, 2021 through Present
(For all capacity entries, please specify TEUs or FEUs)**

Vessel Name	Departure Date	Arrival Date	Vessel Capacity	Available Capacity as of Vessel Cut-Off Date	Available Capacity as of Scheduled Departure Date	Available Capacity as of Actual Departure Date	Identity of Each Shipper Whose Cargo Was Carried	Shipper's Volume Carried	Shipper's Booking Date(s)	Shipper's MQC	Shipper's Non-Service Contract Volume Carried	Price(s) Charged to Shipper for Carriage
[Name]	[Date]	[Date]	[Capacity]	[Capacity]	[Capacity]	[Capacity]	[Shipper 1]	[Shipper 1 Volume]	[Date(s)]	[Shipper 1 MQC]	[Shipper 1 Volume]	[Shipper 1 Price(s)]
[Name]	[Date]	[Date]	[Capacity]	[Capacity]	[Capacity]	[Capacity]	[Shipper 2]	[Shipper 2 Volume]	[Date(s)]	[Shipper 2 MQC]	[Shipper 2 Volume]	[Shipper 2 Price(s)]

**MSC Sailings from Tianjin, China to Los Angeles, California, USA May 1, 2021 through June 30, 2021
(For all capacity entries, please specify TEUs or FEUs)**

Vessel Name	Departure Date	Arrival Date	Vessel Capacity	Available Capacity as of Vessel Cut-Off Date	Available Capacity as of Scheduled Departure Date	Available Capacity as of Actual Departure Date	Identity of Each Shipper Whose Cargo Was Carried	Shipper's Volume Carried	Shipper's Booking Date(s)	Shipper's MQC	Shipper's Non-Service Contract Volume Carried	Price(s) Charged to Shipper for Carriage
[Name]	[Date]	[Date]	[Capacity]	[Capacity]	[Capacity]	[Capacity]	[Shipper 1]	[Shipper 1 Volume]	[Date(s)]	[Shipper 1 MQC]	[Shipper 1 Volume]	[Shipper 1 Price(s)]
[Name]	[Date]	[Date]	[Capacity]	[Capacity]	[Capacity]	[Capacity]	[Shipper 2]	[Shipper 2 Volume]	[Date(s)]	[Shipper 2 MQC]	[Shipper 2 Volume]	[Shipper 2 Price(s)]

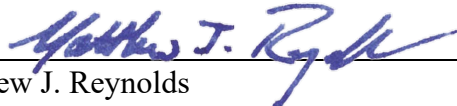
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent MSC Mediterranean Shipping Company SA by emailing a copy to its counsel of record listed below:

Michael F. Scanlon
John Longstreth
Ifigeneia Xanthopoulou
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
ifigeneia.xanthopoulou@klgates.com

Counsel for Respondent MSC Mediterranean Shipping Company SA

Dated: October 7, 2021



Matthew J. Reynolds
For Complainant MCS Industries, Inc.

EXHIBIT 3

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.'S RESPONSES
AND OBJECTIONS TO COMPLAINANT'S FIRST SET OF DOCUMENT REQUESTS**

Pursuant to Rule 146 (b) of the Commission's Rules of Practice and Procedure, 46 C.F.R. 502.146(b), Respondent MSC Mediterranean Shipping Company S.A, ("MSC"), through undersigned counsel, hereby responds and objects to Complainant's First Set of Document Requests. In these Responses and Objections, the Ocean Carrier Agreement between Complainant MCS Industries, Inc. ("MCS") and MSC, Contract Number 21-104TPC, effective between May 1, 2021 and April 30, 2022, which referred to as the "OCA" in the Requests, shall be termed the "MCS Service Contract," or simply the "Contract," in accordance with ordinary usage.

OBJECTIONS APPLICABLE TO ALL OF THE REQUESTS

1. MSC objects to the Requests because the Complaint is based on MSC's alleged failure to comply with its contractual obligations under the MCS Service Contract, and asserts Shipping Act violations that cannot be maintained if there is no such failure, and for other reasons that need not be reached if there is no such failure. *See* MCS Oct. 8, 2021 "Submission of Disputes Concerning Scope of Initial RFPs," at 2 (stating that the Complaint "alleges a course of conduct

in which Mediterranean Shipping failed to provide this contractually agreed-upon space for MCS Industries cargo on Mediterranean Shipping's ships, in violation of the Shipping Act.""). No such failure is alleged as to one of the port ranges served under the Contract, and only a partial failure as to another, allegations that are themselves facially inconsistent with the suggestion in the Complaint that these alleged contractual breaches were part of some overarching scheme or practice. Any discovery not related to MSC's alleged failure to comply with its obligations under the MCS Service Contract is irrelevant, burdensome, and unnecessary if there is no such failure.

Complainant's attempt to make this case more than a simple breach of contract case (as is required to invoke this Court's jurisdiction) depends on a series of entirely unsupported and implausible assertions, including, for example, that MSC had the opportunity to collude with Respondent COSCO through Commission approved and supervised agreements, even though the two Respondents are not in fact parties to any such agreements to begin with, and the allegation that MSC sought to breach the contract as part of a collusive scheme to carry more cargo in the spot market, even though MSC had no obligation to enter into a service contract with MCS or any other shipper, and remains free to terminate the contract at any time on prior notice. The very extensive discovery sought is largely a fishing expedition that purports to be based on these unsupported and implausible allegations, and allowing it would be entirely inconsistent with the requirement that the discovery rules, like all of the Commission's procedural rules, be "construed to secure the just, speedy, and inexpensive determination of every proceeding." 46 C.F.R. § 502.1.

2. MSC objects to the Requests to the extent that they are intended or could be interpreted to call for information that is protected by: (i) the attorney-client privilege; (ii) the work-product doctrine; or (iii) any other applicable privilege or protection.

3. MSC objects to the Requests to the extent that they purport to require it to produce documents outside the scope of discovery under the Commission's Rules of Procedure.

4. MSC objects to the Requests to the extent that they are unduly duplicative, repetitive and cumulative, containing multiple paragraphs seeking the same or overlapping documents.

5. MSC objects to the Requests to the extent that they seek documents not in its possession, custody, or control.

6. MSC objects to the Requests to the extent they seek or require a response that is not relevant to the subject matter of this case, not reasonably calculated to lead to the discovery of admissible evidence or otherwise not within the scope of discovery as provided by the Rules.

7. MSC objects to the Requests to the extent that they seek confidential or proprietary documents or information.

8. MSC objects to the Requests to the extent they seek documents MSC is prohibited from disclosing under any law or regulation, including any law or obligation imposed by a United States federal or state entity or by any jurisdiction outside the United States to which MSC is subject.

9. MSC objects to the Requests to the extent they purport to apply to a time period that is overly broad or fail to identify an applicable time period at all, and in particular objects to providing information for any time period not related to the MCS Service Contract.

10. MSC objects to the Requests to the extent they subject it to undue burden or unnecessary expense, or where the burden or expense of the proposed discovery outweighs its likely benefit, as provided in Rule 141(e)(2)(ii)(C), 46 C.F.R. §502.141(e)(2)(ii)(C).

11. MSC objects to the Requests to the extent they are unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive, as provided in Rule 141(e)(2)(ii)(A), 46 C.F.R. §502.141(e)(2)(ii)(A).

12. MSC objects to the Instructions in the Requests to the extent they exceed or impose obligations on it that are inconsistent or greater than those set forth in the Commission's Rules and applicable precedent.

13. In providing these responses and objections, and in producing documents pursuant hereto, MSC does not in any way waive or intend to waive, but rather intend to preserve and are preserving;

- (a) All objections as to competency, relevancy, materiality, and admissibility of the documents and the subject matter thereof;
- (b) All objection as to vagueness, ambiguity, and undue burden;
- (c) All rights to object on any ground to the use of any said documents or responses to the Requests or the subject matter thereof, in any subsequent proceedings, and during the trial of this or any other action; and
- (d) All rights to object on any ground to any request for further responses to these or any other request for documents, interrogatory request, or other discovery request involving or related to the subject matter of these Requests.

14. MSC objects to the Requests to the extent that they seek documents that are within the possession, custody, or control of Complainant.

15. MSC objects to the discovery of electronically stored information from sources that are not reasonably accessible because of undue burden or cost.

16. MSC objects to the Requests to the extent they seek “any” or “all” documents regarding a particular subject. MSC is and will continue to conduct a reasonable investigation and search with respect to the persons and information responsive to Complainant’s Requests to which MSC does not otherwise object. To the extent the Requests seek to impose a greater burden on MSC, they are unduly burdensome, overly broad, not relevant to the claim or defense of any party, nor reasonably calculated to lead to the discovery of admissible evidence. MSC’s investigation of this matter is continuing, and it reserves the right to supplement these responses as they deem necessary.

17. MSC objects to the definitions of “Respondent,” “MSC,” “you,” and “your” to the extent they purport to include individuals or entities other than Respondent MSC, or an officer or employee of Respondent MSC or a subsidiary of MSC that had direct responsibility for dealings with Complainant.

18. MSC objects to the definition of “MCS cargo” to the extent it requires MSC to have knowledge of matters not within MSC’s knowledge, such as who owns cargo that MCS or its agents may have attempted to book with MSC, and because the phrase “notice of MCS’s space requirements” is vague in context.

19. MSC objects to the definition of “document” to the extent it purports to include material beyond its possession, custody, or control.

20. MSC objects to the definitions of “identify” in definitions number 3 and 4 because they exceed the requirements for a response to a request for production of documents and are not pertinent to such a request.

21. MSC objects to Instruction 3 as it exceeds the requirements of the Commission’s Rules and/or applicable case law. Notwithstanding and without waiving this objection, MSC will

produce documents as they are maintained in the ordinary course, either electronically or in hard copy, and where applicable, with copies of any containers, labels, or other markings. If it proves efficient for the parties to produce electronically stored information in some other form, MSC will discuss whether a mutually agreeable stipulation as to such production can be reached.

22. MSC notes the request in Instruction 4 that it provide a privilege log, and will discuss a mutually agreeable time and manner for producing such a log.

DEFINITIONS APPLICABLE TO OBJECTIONS

1. In these Responses and Objections, the phrase “overly broad” means that the requested information encompasses, in total or in large part, information that is irrelevant, and that accordingly its disclosure would be burdensome and oppressive.

2. In these Responses and Objections, the term “vague” means that the referenced item is ambiguous or otherwise lacks sufficient precision to permit a response.

3. In these Responses and Objections, the phrase “unduly burdensome” means that the disclosure of the requested information would be oppressive, unduly expensive, or impinge unnecessarily on some right or interest of MSC’s, and that the possible probative value of any such disclosure would be substantially outweighed by the effort, harm, or burden that such production would entail.

OBJECTIONS TO SPECIFIC REQUESTS

Incorporating the above general objections into each specific request below, MSC responds and objects to each specific request as follows:

Request No. 1. A complete, fully executed copy of the OCA, including all exhibits, attachments, appendices, and rate agreements attached to the OCA.

Response to Request No. 1. MSC will provide a complete executed copy of the MCS Service Contract and any attachments.

Request No. 2. All documents and communications concerning the OCA, any exhibit, attachment, or appendix to the OCA, or any rate agreement attached to the OCA, including the drafting, negotiation, and execution of the OCA or any exhibit, attachment, appendix, or rate agreement to the OCA.

Response to Request No. 2. MSC objects to this request on the basis that the Complaint does not contain any allegation suggesting a dispute as to the meaning of any term of the Service Contract or as to the relevance of any such dispute to the allegations of the Complaint. The request thus seeks to have MSC undertake a burdensome search for all documents and communications concerning the Service Contract without any reason to believe it is reasonably calculated to lead to the discovery of admissible evidence.

Request No. 3. All documents and communications concerning any adjustments to the Rates and Charges under the OCA.

Response to Request No. 3. MSC objects to this request on the basis that the Complaint does not contain any allegation suggesting a dispute as to any rate or charge under the Service Contract. Notwithstanding and without waiving the foregoing objection, MSC will provide a copy of any amendment to the rate or charge terms of the Service Contract.

Request No. 4. All documents and communications concerning the MQC, including the negotiation of the MQC.

Response to Request No. 4. MSC objects to this request on the basis that the Complaint does not contain any allegation suggesting a dispute as to the meaning of the Minimum Quantity Commitment term of the Service Contract or as to the relevance of any such dispute to the

allegations of the Complaint. The request thus seeks to have MSC undertake a burdensome search for all documents and communications concerning the Minimum Quantity Commitment without any reason to believe it is reasonably calculated to lead to the discovery of admissible evidence.

Request No. 5. All documents and communications with MCS.

Response to Request No. 5. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is also vague in that its request for “documents . . . with MCS” is senseless. To the extent that documents reflecting communications with MCS are relevant and reasonably calculated to lead to the discovery of admissible evidence, MSC will provide them as stated in response to other Requests that overlap with this Request.

Request No. 6. All documents and communications with any person or entity concerning MCS or MCS Cargo, including any of the Intermediaries.

Response to Request No. 6. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is also vague in that its request for “documents . . . with any person” is senseless. To the extent that documents reflect communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Request No. 7. All documents and communications concerning MCS or MCS Cargo.

Response to Request No. 7. This Request appears to entirely duplicate Requests Nos. 5 and 6, and MSC incorporates by reference its responses and objections to Requests Nos. 5 and 6.

To the extent that documents reflect communications concerning cargo that MCS demonstrates it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Request No. 8. All documents and communications concerning any booking or attempted booking of transportation by You of MCS Cargo, including Your acceptance or rejection of each such booking or attempted booking and the reasons therefor.

Response to Request No. 8. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its bookings or attempted bookings complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 9. All documents and communications concerning the tender to You of any MCS Cargo.

Response to Request No. 9. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning tenders as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its tenders or attempted tenders of cargo that was allegedly not carried in violation

of the Contract complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the tender of cargo that MCS demonstrates it tendered under the MCS Service Contract and that was not in fact carried

Request No. 10. All documents and communications concerning any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA, including the date each such notice was sent to You, the date each such notice was received by You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was sent to You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was received by You, and the actual sailing date of Your vessel for which each such notice was provided.

Response to Request No. 10. MSC objects to this Request on the basis that the phrase "notice provided to You of MCS's space requirements" is vague; nor is it clear what difference, if any, is intended between the phrase "notice provided to You of MCS's space requirements," and the terms "booking" or "attempted booking" in Request No. 8. MSC further objects to this Request as unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, to the extent it is understandable, it appears to seek documents and communications concerning bookings and port ranges as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its provision of such "Notice" complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning cargo

that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 11. All documents and communications concerning any MCS Cargo accepted by You for transportation.

Response to Request No. 11. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 12. All documents and communications concerning transportation provided by You of MCS Cargo.

Response to Request No. 12. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry. The request also appears duplicative of Request No. 11. Notwithstanding and without waiving the foregoing objections, MSC will, as stated in response to Request No. 11, provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 13. All documents and communications concerning any MCS Cargo not accepted by You for transportation, including the reasons therefor.

Response to Request No. 13. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning cargo as to which MCS is making no claim and seeks information as to the carriage of cargo even though the Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry (and does not allege or provide any information to establish that MCS' bookings or attempted bookings complied with the Contract.). Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 14. All documents and communications concerning any Force Majeure event affecting the OCA or Your obligations or performance under the OCA, including any notice or notification of any Force Majeure event pursuant to the OCA.

Response to Request No. 14. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. MSC also objects to this request to the extent that it seeks production as to matters of common knowledge that are well known to MCS, given that the maritime trade press, among other sources, is routinely reporting unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and

resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. Notwithstanding and without waiving the foregoing objections, MSC will provide documents responsive to this request that relate to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 15. All documents and communications concerning any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Response to Request No. 15. This request duplicates Request No. 14, and MSC incorporates its objections and response to that Request. MSC will provide responsive documents as to force majeure notifications relating to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Request No. 16. Documents sufficient to show the total cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Response to Request No. 16. MSC objects to this Request as overly broad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might rationally relate to the allegations of the Complaint. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. Notwithstanding and without waiving the foregoing objections, MSC will provide the nominal cargo capacity of the vessels that MSC and its alliance partner Maersk operated in the trade lanes as to which MCS is advancing claims.

Request No. 17. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the date of each such booking or attempted booking.

Response to Request No. 17. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Request No. 18. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space

requirements for any shipment tendered or to be tendered under the OCA, as of the scheduled vessel sailing date associated with each such booking or attempted booking.

Response to Request No. 18. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase “notice of MCS’s space requirements” is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this “available” capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Request No. 19. Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS’s space requirements for any shipment tendered or to be tendered under the OCA, as of the actual vessel sailing date associated with each such booking or attempted booking.

Response to Request No. 19. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the

Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase “notice of MCS’s space requirements” is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this “available” capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the contract but it was not carried.

Request No. 20. Documents sufficient to show the respective totals of cargo (in TEUs or FEUs) transported by You on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS’s space requirements for any shipment tendered or to be tendered under the OCA, that were (a) tendered to You pursuant to any Service Contract with any Shipper, or (b) transported by You not pursuant to any Service Contract with any Shipper.

Response to Request No. 20. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase “notice of MCS’s space requirements” is vague. MSC further objects to the request on the basis that it is apparently propounded in support of the entirely

unsupported and implausible theory that MSC, in collusion with Respondent COSCO, is intentionally and willfully failing to comply with its obligations under the MCS Service Contract so that it can increase carriage on the spot market even though (a) the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried; (b) the Complaint acknowledges that, even in times of unprecedented demand and vessel sailing and supply chain disruptions, MSC has carried a substantial amount of cargo under the Contract; (c) MCS's speculative assertions of collusion with COSCO in support of this purported scheme are entirely inconsistent with known facts, including that MSC does not have an alliance or other FMC agreement with COSCO; (d) if MSC did in fact have such a scheme it could have easily implemented it by simply declining to enter into a service contract with MCS, as is its right, or terminating its existing contract with MCS, as is also its right; and (e) the allegation ignores the well known current realities of international ocean shipping. The burden and expense of providing this data for multiple voyages months after the fact would far outweigh any likely benefit. Notwithstanding the reckless manner in which MCS has chosen to proceed, MSC has proposed an exchange of information as to MCS's core assertion that MSC has not complied with its contractual obligations, which MSC believes will show that MSC has complied with those obligations and has attempted to work in good faith with MCS, and thus cause MCS' invented Shipping Act claims to fall without the need for judicial intervention.

Request No. 21. Documents sufficient to show the prices charged for transportation by You of cargo pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Response to Request No. 21. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition to the objections stated with respect to Request No. 20, MSC further objects to the relevance and propriety of this request in that the confidential rates charged for transportation to shippers other than MCS have no relevance to this case since the Shipping Act does not permit claims of discrimination among shippers with respect to service under a service contract. *See* 46 U.S.C. §§ 41104(5) and (9).

Request No. 22. Documents sufficient to show the prices charged for transportation by You of cargo not pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Response to Request No. 22. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21.

Request No. 23. Documents sufficient to show any sailing of any vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the

OCA, that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Response to Request No. 23. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting the sailing status of any vessel on which MCS demonstrates that it booked or attempted to book cargo under the MCS Service Contract and that cargo was not in fact carried.

Request No. 24. All documents and communications concerning any vessel or sailing offered by You to MCS as an alternative to any booking or attempted booking by MCS or any other person of transportation by You of MCS Cargo, or any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Response to Request No. 24. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting alternatives MSC offered to carry any cargo

that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried on voyage for which the booking was made or attempted.

Request No. 25. All documents and communications concerning Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Response to Request No. 25. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase “regulations and practices for allocating cargo space” is vague and broad enough to cover virtually all aspects of cargo handling on MSC’s vessels.

Request No. 26. Documents sufficient to identify all persons who communicated on Your behalf with MCS or any other person acting on MCS’s behalf concerning MCS Cargo.

Response to Request No. 26. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Request No. 27. Documents sufficient to identify all persons who communicated on MCS's behalf with You or any other person acting on Your behalf concerning MCS Cargo.

Response to Request No. 27. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Request No. 28. Documents sufficient to identify all persons who participated in the drafting, negotiation, execution, and administration of the OCA.

Response to Request No. 28. MSC objects to this request on the basis that the Complaint does not contain any allegation suggesting a dispute as to the meaning of any term of the Service Contract or as to the relevance of any such dispute to the allegations of the Complaint. The request thus seeks to have MSC undertake costs and burdens without any reason to believe they are reasonably calculated to lead to the discovery of admissible evidence.

Request No. 29. Documents sufficient to identify all persons who receive on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under any Service Contract with You.

Response to Request No. 29. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that

it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase “notice of MCS’s space requirements” is vague. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Request No. 30. Documents sufficient to identify all persons who allocate cargo space on any sailings of Your vessels for routes covered by the OCA.

Response to Request No. 30. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase “persons who allocate cargo space” is vague and broad enough to cover virtually any person involved in cargo handling on MSC’s vessels.

Request No. 31. Copies of Your financial statements (audited, if available) for the periods January 1, 2019 through the present, including Your balance sheet(s) or equivalent(s), income statement(s) or equivalent(s), cash flow statement(s) or equivalent(s), and statements of shareholders’ equity or equivalent(s).

Response to Request No. 31. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically.

Request No. 32. Documents sufficient to show Your financial performance from January 1, 2019 through the present, including Your quarterly and annual sales, gross revenues, net revenues, gross margin, gross profits or losses, operating profits or losses, and net profits or losses.

Response to Request No. 32. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically.

Request No. 33. Documents sufficient to show the effect of any force majeure event on Your financial performance from January 1, 2020 through the present.

Response to Request No. 33. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically.

Request No 34. Documents sufficient to show Your ownership and ownership structure from January 1, 2019 through the present.

Response to Request No. 34. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose ownership information it does not disclose publically.

Request No. 35. Documents sufficient to show Your current assets, including any insurance policies available to cover reparations, fees, or costs awarded in this action.

Response to Request No. 35. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically. MSC further objects to this Request on the basis that the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action since there can be no legitimate issue as to MSC's solvency to pay any such amounts..

Request No. 36. Documents sufficient to show Your policies, procedures, and/or practices concerning the retention or destruction of documents and communications, including emails.

Response to Request No. 36. MSC objects to this Request on the basis that the time period relevant to this lawsuit is extremely recent and MSC issued a litigation hold upon becoming aware of the litigation. There is no reason to believe any general document retention policy or practice is of any material relevance.

Request No. 37. Documents sufficient to show Your retention or destruction of documents and communications concerning this action, including any notice to preserve such evidence.

Response to Request No. 37. MSC incorporates its objections to Request No 36. MSC further objects that the litigation hold instructions are privileged.

Document No. 38. All documents and communications concerning this action, or any claims or defenses in this action.

Response to Request No. 38. MSC incorporates its responses and objections to Request Nos. 1 to 37. To the extent that this request may encompass documents that are both responsive and not duplicative of these prior requests, they are likely to be privileged in any event.

Request No. 39. All documents and communications, regardless of date, concerning any instances in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Response to Request No. 39. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence as to makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint, which are themselves, as noted above, made entirely on the basis of speculation and not personal knowledge of the party swearing to the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Request No. 40. All documents and communications that You intend to rely upon in this action or introduce at hearings or at trial in this action.

Response to Request No. 40. MSC will provide such documents as required by and at the time required by the Commission's rules.

Respectfully submitted,

/s/ John Longstreth
Michael Scanlon
John Longstreth
K&L GATES LLP
1601 K St. NW
Washington, DC 20006
(202) 661-6271
michael.scanlon@klgates.com
john.longstreth@klgates.com

Ifigeneia Xanthopoulou
K&L Gates LLP
599 Lexington Ave.
New York, New York 10022
(212) 536-3956
ifigeneia.xanthopoulou@klgates.com

Counsel for Respondent
MSC Mediterranean Shipping Company S.A.

Dated: October 25, 2021

CERTIFICATE OF SERVICE

I certify that, on October 25, 2021, a true and current copy of the foregoing Notice of Appearance was served via electronic mail on the following:

Matthew J. Reynolds
Karl C. Huth
Sara G. Wilcox
HUTH REYNOLDS LLP
41 Cannon Court
Huntington, NY 11743
reynolds@huthreynolds.com
huth@huthreynolds.com
swilcox@huthreynolds.com

Counsel for Complainant MCS Industries, Inc.

/s/ John Longstreth

EXHIBIT 4

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**RESPONDENT MEDITERRANEAN SHIPPING COMPANY S.A.'S
OBJECTIONS TO COMPLAINANT'S FIRST SET OF INTERROGATORIES**

Pursuant to Rule 145(b) of the Commission's Rules of Practice and Procedure, 46 C.F.R. 502.145(b), Respondent MSC Mediterranean Shipping Company S.A. ("MSC"), through undersigned counsel, hereby objects to Complainant's First Set of Interrogatories. In these Objections, the Ocean Carrier Agreement between Complainant MCS Industries, Inc. ("MCS") and MSC, Contract Number 21-104TPC, effective between May 1, 2021 and April 30, 2022, which referred to as the "OCA" in the Interrogatories, shall be termed the "MCS Service Contract," or simply the "Contract," in accordance with ordinary usage.

OBJECTIONS APPLICABLE TO ALL OF THE INTERROGATORIES

1. MSC objects to the Interrogatories in their entirety because the Complaint is based on MSC's alleged failure to comply with its contractual obligations under the MCS Service Contract, and asserts Shipping Act violations that cannot be maintained if there is no such failure, and for other reasons that need not be reached if there is no such failure. *See* MCS Oct. 8, 2021 "Submission of Disputes Concerning Scope of Initial RFPs," at 2 (stating that the Complaint "alleges a course of conduct in which Mediterranean Shipping failed to provide this contractually agreed-upon space for MCS Industries cargo on Mediterranean Shipping's ships, in violation of the Shipping Act."). Discovery already exchanged between the parties demonstrates that there is no basis for any of Complainant's Shipping Act claims and

that this proceeding was abusive and should never have been filed. Complainant's exceedingly broad, duplicative, burdensome, and largely irrelevant Interrogatories serve no purpose other than to increase the unwarranted expense and burden MSC has already incurred in defending this proceeding.

2. MSC further objects to the Interrogatories in their entirety because any discovery not related to MSC's alleged failure to comply with its obligations under the MCS Service Contract is irrelevant, burdensome, and unnecessary if there is no such failure. Complainant's attempt to make this case more than a simple breach of contract case (as is required to invoke this Court's jurisdiction) depends on a series of entirely unsupported and implausible assertions, including, for example, that MSC had the opportunity to collude with Respondent COSCO through Commission approved and supervised agreements, even though the two Respondents are not in fact parties to any such agreements to begin with, and the allegation that MSC sought to breach the contract as part of a collusive scheme to carry more cargo in the spot market, even though MSC had no obligation to enter into a service contract with MCS or any other shipper, and remains free to terminate the contract at any time on prior notice. The very extensive discovery sought is largely a fishing expedition that purports to be based on these unsupported and implausible allegations, and allowing it would be entirely inconsistent with the requirement that the discovery rules, like all of the Commission's procedural rules, be "construed to secure the just, speedy, and inexpensive determination of every proceeding." 46 C.F.R. § 502.1.

3. MSC further objects to the Interrogatories in their entirety because discovery already exchanged between the parties demonstrates the complete lack of basis for the allegations of the Complaint. The discovery discloses that at Qingdao, the port that is the basis of Complainant's claims, Complainant placed only two bookings with MSC for the time period relevant to the Complaint, on April 8 and July 8, and had no direct communications with MSC at all from May 17 to July 8. The problem, as MSC has advised Complainant and as Complainant is no doubt already aware, and as Complainant was or should have been aware before filing its Complaint, was an apparent miscommunication between Complainant's

handling agent and the agent who places bookings with MSC. MSC resolved the problem as soon as it became aware of it, and Complainant is now using a different booking agent. There is not, and never was, any basis for Complainant to file any kind of legal action, much less an action at the Commission full of lurid and entirely unsupported allegations of unfair practices and other violations of the Shipping Act.

4. MSC further objects to the Interrogatories in their entirety because information concerning the apparent miscommunication that underlies Complainant's alleged grievances is at least as easily available to Complainant as to MSC.

5. MSC further objects to the Interrogatories in their entirety because the timing of their service demonstrates that they were issued for an improper purpose. Complainant's initial discovery consisted only of document requests, demonstrating that Complainant at that stage of the litigation believed it did not need additional discovery. The Interrogatories were served about two weeks later, on October 7, 2021, the day before the parties were scheduled to submit discovery disputes to the Administrative Law Judge, raising the strong inference that they were filed merely as part of a "tit for tat" strategy to try to improve Complainant's position in any discovery motions practice, and to increase the litigation burdens on MSC to try to coerce a settlement, and not to obtain information useful and necessary to the resolution of any dispute between the parties. As set out more fully below, to the extent there is any relevant information sought in the Interrogatories, it is contained in documents already exchanged between the parties. Indeed, the language of the Interrogatories duplicates in many cases word for word the language of document requests Complainant has served.

6. MSC further objects to the Interrogatories in their entirety because, while it understands that it has the right to seek the costs and attorney's fees it has incurred in defending this baseless lawsuit under the attorney's fee provision of the Shipping Act and the Commission's rule implementing it, which were adopted for the purpose, among others, of discouraging Complainants from filing meritless Complaints that are difficult to dismiss before discovery reveals their lack of basis because their allegations must be

accepted as true however unsupported, the availability of this avenue to allow MSC to ultimately recover its fees and costs does not mean that it would be proper to require MSC incur those fees and costs to begin with. It is also not clear that the attorney's fee provisions of the Shipping Act and the Commission's rule would allow MSC to recover the internal costs it has incurred in responding to this baseless proceeding.

7. MSC objects to the Interrogatories to the extent that they are intended or could be interpreted to call for information that is protected by: (i) the attorney-client privilege; (ii) the work-product doctrine; or (iii) any other applicable privilege or protection.

8. MSC objects to the Interrogatories to the extent that they purport to require it to produce information outside the scope of discovery under the Commission's Rules of Procedure.

9. MSC objects to the Interrogatories to the extent that they are unduly duplicative, repetitive and cumulative, containing multiple paragraphs seeking the same or overlapping documents.

10. MSC objects to the Interrogatories as exceeding the number allowed without leave by the Commission's rules. Interrogatory 18, for example, by itself has at least 12 express subparts, and Interrogatory 19 has at least 36.

11. MSC objects to the Interrogatories to the extent that they seek documents not in its possession, custody, or control.

12. MSC objects to the Interrogatories to the extent they seek or require a response that is not relevant to the subject matter of this case, not reasonably calculated to lead to the discovery of admissible evidence or otherwise not within the scope of discovery as provided by the Rules.

13. MSC objects to the Interrogatories to the extent that they seek confidential or proprietary information, the protection of which cannot be assured even if a protective order is entered.

14. MSC objects to the Interrogatories to the extent they seek information MSC is prohibited from disclosing under any law or regulation, including any law or obligation imposed by a United States federal or state entity or by any jurisdiction outside the United States to which MSC is subject.

15. MSC objects to the Interrogatories to the extent they purport to apply to a time period that is overly broad or fail to identify an applicable time period at all, and in particular objects to providing information for any time period not related to the MCS Service Contract.

16. MSC objects to the Interrogatories to the extent they subject it to undue burden or unnecessary expense, or where the burden or expense of the proposed discovery outweighs its likely benefit, as provided in Rule 141(e)(2)(ii)(C), 46 C.F.R. §502.141(e)(2)(ii)(C).

17. MSC objects to the Interrogatories to the extent they are unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive, as provided in Rule 141(e)(2)(ii)(A), 46 C.F.R. §502.141(e)(2)(ii)(A).

18. MSC objects to the Instructions in the Interrogatories to the extent they exceed or impose obligations on it that are inconsistent or greater than those set forth in the Commission's Rules and applicable precedent.

19. In providing these objections, MSC does not in any way waive or intend to waive, but rather intend to preserve and are preserving;

- (a) All objections as to competency, relevancy, materiality, and admissibility;
- (b) All objection as to vagueness, ambiguity, and undue burden; and
- (c) all rights to object on any ground to any request for further responses to these or any other request for documents, interrogatory request, or other discovery request involving or related to the subject matter of these Interrogatories.

20. MSC objects to the Interrogatories to the extent that they seek documents that are within the possession, custody, or control of Complainant.

21. MSC objects to the discovery of electronically stored information from sources that are not reasonably accessible because of undue burden or cost.

22. MSC objects to the definitions of “Respondent,” “MSC,” “you,” and “your” to the extent they purport to include individuals or entities other than Respondent MSC, or an officer or employee of Respondent MSC or a subsidiary of MSC that had direct responsibility for dealings with Complainant.

23. MSC objects to the definition of “MCS cargo” to the extent it requires MSC to have knowledge of matters not within MSC’s knowledge, such as who owns cargo that MCS or its agents may have attempted to book with MSC, and because the phrase “notice of MCS’s space requirements” is vague in context.

24. MSC objects to the definition of “document” to the extent it purports to include material beyond its possession, custody, or control.

25. MSC objects to the definitions of “identify” in definitions number 3 and 4 because they exceed the requirements for a response to an Interrogatory and are not pertinent to such an Interrogatory.

26. MSC notes the request in Instruction 3 that it provide a privilege log, and will discuss a mutually agreeable time and manner for producing such a log.

DEFINITIONS APPLICABLE TO OBJECTIONS

1. In these Responses and Objections, the phrase “overly broad” means that the requested information encompasses, in total or in large part, information that is irrelevant, and that accordingly its disclosure would be burdensome and oppressive.

2. In these Responses and Objections, the term “vague” means that the referenced item is ambiguous or otherwise lacks sufficient precision to permit a response.

3. In these Responses and Objections, the phrase “unduly burdensome” means that the disclosure of the requested information would be oppressive, unduly expensive, or impinge unnecessarily on some right or interest of MSC’s, and that the possible probative value of any such disclosure would be substantially outweighed by the effort, harm, or burden that such production would entail.

OBJECTIONS TO SPECIFIC INTERROGATORIES

Incorporating the above general objections into each specific response below, MSC responds and objects to each Interrogatory as follows:

Interrogatory No. 1 Identify each person from whom/which You obtained information in order to answer these Interrogatories.

Response to Interrogatory No. 1 Persons who have information relevant to the proceeding are identified in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. The objections contained herein are made by undersigned counsel and are supported by those documents as well.

Interrogatory No. 2 Identify each document You referred to in order to respond to these Interrogatories.

Response to Interrogatory No. 2 Documents contained in the productions of Complainant and MSC on November 5, 2021, in response to each party's First Requests for Production of Document, support the objections contained herein.

Interrogatory No. 3 Identify each person with knowledge of the facts underlying MCS's claims against You and/or Your defenses to MCS's claims.

Response to Interrogatory No. 3 MSC objects to this Interrogatory on the basis that persons with knowledge of the underlying facts that may remain relevant to this proceeding are identified in the parties' Initial Disclosures and in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents, and that Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 4 Identify each person who/that participated on Your behalf in the drafting, negotiation, execution, and administration of the OCA, including the OCA's MQC.

Response to Interrogatory No. 4 MSC objects to this Interrogatory on the basis that the Complaint does not contain any allegation suggesting a dispute as to the meaning of any term of the Service Contract or as to the relevance of any such dispute to the allegations of the Complaint. The Interrogatory thus seeks to have MSC undertake a burdensome search for all persons who participated in the “drafting, negotiation, execution, and administration” of the Service Contract, without any reason to believe it is reasonably calculated to lead to the discovery of admissible evidence. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons with whom it negotiated the Service Contract and who executed it and have dealt with it in administering it, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 5 Identify each person who/that acted on Your behalf concerning MCS or MCS Cargo.

Response to Interrogatory No. 5 MSC objects to this Interrogatory on the basis that it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request is also vague in that it does not make clear what is meant by “acted on [MSC’s] behalf” and would also require MSC to potentially identify numerous persons who dealt with MCS and the contract, but did not have important roles with respect to the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC during the time period relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has

not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 6 Identify each person who/that communicated with MCS or any of the Intermediaries concerning MCS or MCS Cargo.

Response to Interrogatory No. 6 MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request would also require MSC to potentially identify numerous persons who communicated with MCS concerning MCS or MCS cargo but did not have important roles with respect the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 7 Identify each person who/that received or receives on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under the OCA.

Response to Interrogatory No. 7 MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted

and undertook to carry. The request is also vague in that it does not make clear what is meant by “acted on [MSC’s] behalf.” MSC further objects to this Interrogatory as overly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 8 Identify each instance in which You contend that MCS, in an untimely or otherwise improper fashion, requested space for any MCS Cargo or shipment on any MSC sailing, provided notice of its space requirements for shipments to be tendered under the OCA, and/or tendered any MCS Cargo or shipment under the OCA, including the following information for each such instance:

- a. the date and means of the request/tender,
- b. the date and means of Your response to the request/tender,
- c. the reason(s) You considered the request/tender to be untimely or improper, and
- d. identify all persons with knowledge of the matters requested in this Interrogatory.

Response to Interrogatory No. 8 MSC objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 9 Identify any Force Majeure event that You contend affected the OCA or MSC’s obligations or performance under the OCA, including the date and manner of any notice or notification of any Force Majeure event pursuant to the OCA.

Response to Interrogatory No. 9 MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, including as to time period. MSC further objects to the extent the Interrogatory seeks production as to matters of common knowledge that are well known to MCS, given that the national and maritime trade press, among other sources, have routinely reported throughout the relevant time period unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 10 Identify any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Response to Interrogatory No. 10 MSC objects to this Interrogatory, because it appears to entirely duplicate Interrogatory No. 9, and incorporates its responses and objections to Interrogatory No. 9. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 11 Identify each person with knowledge of Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Response to Interrogatory No. 11 MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “regulations and practices for allocating cargo space” is vague and broad enough to cover virtually all aspects of cargo handling on MSC’s vessels.

Interrogatory No. 12 Identify each person who/that allocates cargo space on any sailings of Your vessels for routes covered by the OCA.

Response to Interrogatory No. 12 MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “each person who/that allocates cargo space” is vague and broad enough to cover virtually any person involved in cargo handling on MSC’s vessels. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 13 Identify each person with knowledge of Your financial performance from January 1, 2019 through the present, including the effects of the global COVID-19 pandemic and any force majeure event on Your financial performance.

Response to Interrogatory No. 13 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically.

Interrogatory No. 14 Identify each insurance policy available to cover reparations, fees, or costs awarded in this action, including the insurance carrier, effective date(s) of the policy, policy number, and coverage limits.

Response to Interrogatory No. 14 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically. MSC further objects to this Interrogatory as the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action, since there can be no legitimate issue as to MSC's solvency to pay any such amounts.

Interrogatory No. 15 Identify each instance, regardless of date, in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Response to Interrogatory No. 15 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, as it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, which are themselves made entirely on the basis of speculation and not personal knowledge of the party swearing to

the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Interrogatory No. 16 Identify each fact witness You expect to submit testimony on Your behalf in this proceeding and state the subject matter and the substance of the facts regarding which the witness is expected to testify.

Response to Interrogatory No. 16 MSC objects to this Interrogatory as premature and refers MCS to MSC's Initial Disclosures and response to Interrogatory No. 3 above.

Interrogatory No. 17 Identify any planned sailing of any of Your vessels on any of the routes covered by the OCA that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Response to Interrogatory No. 17 MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 18 For each sailing on which You transported cargo or shipment(s) for any Shipper from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, identify the vessel that made such sailing and provide the following information in the format provided in the Appendix hereto:

- a. State the date of departure from the respective loading port (i.e., Qingdao or Tianjin) for such sailing;
- b. State the date of arrival at the discharge port (i.e., Los Angeles) for such sailing;
- c. State the total cargo capacity (in TEUs or FEUs) of the vessel that made such sailing;
- d. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of seven days prior to such vessel's cut-off date;
- e. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's scheduled sailing date;
- f. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's actual sailing date;
- g. Identify each Shipper whose cargo or shipment was carried on such sailing;
- h. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing;
- i. For each Shipper so identified, state the date(s) on which such Shipper booked the space for its cargo carried on such sailing;
- j. For each Shipper so identified, state that Shipper's total contractual minimum quantity commitment with MSC, if any;
- k. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing not pursuant to any Service Contract; and
- l. For each Shipper so identified, state the price(s) charged for transportation by You of that Shipper's cargo or shipment on such sailing.

Response to Interrogatory No. 18 MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks

information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this “available” capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried, and that the discovery in this case demonstrates that Complainant went weeks without contacting MSC during the period it now alleges MSC failed to carry its cargo. Further, MCS is not entitled to information regarding sailings from Qingdao from “May 1 through the present,” because its Complaint was filed on August 3, 2021 and it has asserted that its issues were resolved after that date.

MSC further objects to this Interrogatory as unduly burdensome to the extent that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Interrogatory No. 19 For each of the dates listed below, identify each MSC vessel that was, as of each such date, scheduled for a future sailing from Qingdao, People’s Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People’s Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, and, for each such vessel, state its total cargo capacity (in TEUs or FEUs), the total cargo capacity (in TEUs or FEUs) that was unbooked or available on such vessel as of each such date, and the scheduled date(s) of departure from the respective loading port (i.e., Qingdao or Tianjin) for such future sailing(s):

- a. April 8, 2021;
- b. April 29, 2021;
- c. May 8, 2021;
- d. May 12, 2021;
- e. May 24, 2021;
- f. July 2, 2021;
- g. July 7, 2021; /
- h. July 8, 2021;
- i. July 21, 2021;
- j. August 4, 2021;
- k. August 12, 2021; and
- l. September 20, 2021.

Response to Interrogatory No. 19 MSC objects to this Interrogatory, because it is vague, overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit its scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this “available” capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

MSC further objects to this Interrogatory because it is unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Respectfully submitted,

/s/ John Longstreth
Michael Scanlon
John Longstreth
K&L GATES LLP
1601 K St. NW
Washington, DC 20006
(202) 661-6271
michael.scanlon@klgates.com
john.longstreth@klgates.com

Ifigeneia Xanthopoulou
K&L Gates LLP
599 Lexington Ave.
New York, New York 10022
(212) 536-3956
ifigeneia.xanthopoulou@klgates.com

Counsel for Respondent
MSC Mediterranean Shipping Company S.A.

Dated: November 8, 2021

CERTIFICATE OF SERVICE

I certify that, on November 8, 2021, a true and current copy of the foregoing Responses was served via electronic mail on the following:

Matthew J. Reynolds
Karl C. Huth
Sara G. Wilcox
HUTH REYNOLDS LLP
41 Cannon Court
Huntington, NY 11743
reynolds@huthreynolds.com
huth@huthreynolds.com
swilcox@huthreynolds.com

Counsel for Complainant MCS Industries, Inc.

/s/ John S. Longstreth

EXHIBIT 5

October 6, 2021

By Email

John Longstreth, Esq.
K&L Gates LLP
1601 K Street, NW
Washington DC 20006
john.longstreth@klgates.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm'n)

Dear Mr. Longstreth:

I write on behalf of my client, Complainant MCS Industries, Inc. ("MCS"), to memorialize our call yesterday regarding discovery matters in the ongoing case between MCS and MSC Mediterranean Shipping Co. SA ("MSC").

Consistent with the agenda items I emailed you and your colleagues in advance of the call, I began the call by inquiring about when we could expect to receive from you the proposed confidentiality stipulation that we had previously discussed. You instead immediately shifted the conversation to the proposal discussed below.

Proposal for multi-staged production: You proposed that, prior to MSC producing (and perhaps even collecting) documents responsive to MCS's requests for production of documents and electronically stored information ("RFPs"), MCS should first have to provide to you additional documents and/or information above and beyond the information already contained in MCS's Complaint and provided in our prior correspondence, including in particular my detailed September 1, 2021 email to you pursuant to Rule 408 of the Federal Rules of Evidence.

As I noted during our conversation, no such one-sided discovery is required, or even contemplated, by the Federal Maritime Commission's ("FMC") Rules of Practice and Procedure (the "Rules"). MCS is not required to prove any prima facie case in order to seek discovery from MSC pursuant to the Rules. Although we are, of course, willing to discuss reasonable narrowing or streamlining of our RFPs, MCS rejects your suggestion that the Complaint and our several discussions thus far are somehow

insufficient for MSC to be able to identify the documents and information responsive to MCS's RFPs.

Moreover, seeking now to impose this unorthodox procedure as some kind of prerequisite to MSC complying with its own discovery obligations under the Rules is utterly inconsistent with the Joint Status Report and Proposed Discovery Schedule that you filed with the FMC, and incompatible with the deadlines set forth in Chief Administrative Law Judge Wirth's September 23, 2021 Scheduling Order in this case (the "Scheduling Order"). MCS's RFPs were timely served on September 24, 2021, and requested that MSC produce responsive, non-privileged documents by November 5, 2021—exactly as contemplated by the parties' Joint Status Report and Proposed Discovery Schedule and the Scheduling Order.

To the extent you believe that interposing this new preliminary step in the discovery process will facilitate a prompt, inexpensive resolution to this litigation—whether in the context of a mediation before CADRS or otherwise—we are open to considering your proposal. As we discussed, however, your proposal necessarily will entail alterations to the current discovery schedule to (1) align our respective discovery response deadlines and (2) ensure that both sides' document productions are substantially complete sufficiently in advance of depositions to allow adequate time for review and preparation. Your proposal would also need to make clear that it in no way limits either party's entitlement to the full measure of discovery afforded by the Rules.

More importantly, as you conceded during the call, this preliminary step cannot be one-sided. It is clear from our prior discussions that you and/or your client have conducted a preliminary investigation and have identified instances during the time period of primary focus—i.e., for sailings in May through July 2021—when MCS or its agents requested space on MSC sailings but such requests were, in MSC's view, not "properly or timely" made. MSC's information on such instances should, of course, be exchanged simultaneously with MCS's identification of instances where carriage by MSC was requested, and both parties should promptly produce documents, communications, and information relating to those events.

Confidentiality Stipulation/Protective Order:

- When we returned to the issue of a confidentiality stipulation, you suggested that we table that issue for now and that, should we agree to the staged production you are proposing, there may be no need for any such agreement.

- We inquired whether MSC will raise any Swiss law objections or issues with respect to our RFPs, and whether there would be any data privacy issues with your collection from MSC custodians located abroad, and you indicated that you were not aware of any such issues.
- We continue to believe that, especially given the compressed time frame for discovery in this case, we should address the issue of an appropriate confidentiality stipulation now. To that end, consistent with our prior discussions, please provide us with a proposed confidentiality stipulation that would be acceptable to MSC.

Production Parameters:

- As discussed, we included fairly standard e-discovery production parameters in our document requests, but are open to considering alternate proposals to streamline and reduce costs, including the production of documents in native format, with a stipulation that native files, whenever used in discovery, motion practice, or other filings with the ALJ, would receive unique document identifiers. We discussed that such a production would be considered to be producing such files as they are kept in the ordinary course of business, obviating the need to organize production documents according to the particular RFP(s) to which they respond.
- You represented that you would consult internally with your e-discovery team and revert with any proposals to alter the production parameters.

Third Parties/Agents:

- Both parties acknowledge that several third parties are identified in one or both sets of initial disclosures and that discovery from those third parties may be relevant to the matters at issue.
- As discussed, MCS is seeking documents informally from its agent Expeditors International and, to the extent we are able to obtain such documents, we intend to produce them in discovery along with MCS's own documents.
- Our understanding is that none of the other third parties identified by the parties is an agent of MCS or acting on MCS's behalf, and asked which of the other third parties are agents of MSC.
- You explained your understanding that no third party identified in this case is acting as an agent of MSC and that, to the extent some interactions between MCS and MSC may have been via freight forwarders or other

entities acting as intermediaries, none of those entities was acting on behalf of MSC. You will confirm this with your client and let us know.

Time Periods in Requests for Production and Interrogatories:

- We clarified that while our complaint is not specifically seeking reparations for alleged breaches outside of the current 2021 contract year, our RFPs generally seek discovery from at least January 2021 in order to capture documents from prior to May 1, 2021 that relate to the current contract year (e.g., negotiation of the current service contract and communications prior to May 1, 2021 relating to sailings within the current contract year).
- Certain of MCS's RFPs seek information about prior time periods (e.g., MSC's financial performance since 2019) because MSC's course of conduct over time and comparative performance in prior contract years (particularly immediately prior to and during the current global pandemic) are, of course, relevant to our causes of action.
- You plan to object to producing information relating to prior contract years but agree that both parties should produce documents and information from prior to May 2021 that relate to the current contract.
- You explained that your RFP 4 is not actually seeking all documents relating to contract negotiations going back to 2017, but instead is focused on establishing whether the parties negotiated, and whether MCS accepted a service contract with MSC, in each year back to 2017. You further explained that your RFP 4 is based on your understanding that in at least one year in that period the parties discussed but did not sign a service contract. We discussed that we may be able to resolve this question via stipulation.

MCS's objections to RFPs and Interrogatories:

- Although we both acknowledged that the parties plan to exchange written objections within 30 days after our exchange of RFPs, we also proceeded to discuss briefly some of our objections to your interrogatories and RFPs.
- We anticipate making general objections to any of your RFPs that seek discovery beyond the scope of the FMC's Rules of Practice; to production of documents already in MSC's possession; to production of any documents outside of MCS's possession, custody, or control (and particularly from third parties); and to production of documents that would disclose

- privileged or trade secret information or information subject to confidentiality obligations.
- We will answer the interrogatories based on MCS's current knowledge and reserve the right to amend or expand our answers as discovery proceeds.
 - We will object to the definition of MCS as including all agents except to the extent material from any such agents is in the possession of MCS. As we discussed, there are multiple third-party intermediaries involved in the relationship between MCS and MSC that we understand MCS does not control.
 - We proposed that we provide business addresses and phone numbers for individuals identified in MCS's responses to interrogatories in lieu of individuals' home addresses and phone numbers. This is acceptable to you.
 - We proposed that documents be made available to you electronically, rather than via delivery to K&L Gates's Washington, DC office. You clarified that an electronic production that is accessible from a machine located in your offices will suffice to satisfy that requirement.
 - We object to the time period in RFP 4, as noted above.

MSC's objections to RFPs:

- Although you indicated you did not want to engage in a detailed discussion of specific objections to our RFPs—which, frankly, I had expected and understood to be the primary purpose of yesterday's call—we nevertheless provided you with clarifications of certain of our RFPs in anticipation of potential objections by you.
- You will object to engaging in the breadth of discovery covered by our RFPs prior to your proposed preliminary discovery from MCS discussed above. As we discussed at length, there is no basis for such an objection in the Rules.
- You propose to produce *only* material relating to the current contract year and transactions from certain ports pursuant to the current contract. We disagree that this is the only relevant time period (see above); depending on MSC's continued performance under the current service contract, it is possible that documents concerning MSC's carriage to and from certain ports could be excluded from current discovery efforts.
- You will object to producing financial information about MSC, which we believe is clearly relevant to the claims and defenses in this matter, especially given your prior statement that force majeure is an issue in this

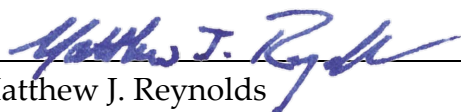
case and your client's public statements about the impact of global events and circumstances, including the COVID-19 pandemic, on MSC.

- You will object to providing any documents or information relating to MCS's claims of discrimination because you disagree with our invocation and interpretation of the statutes underlying those claims. We disagree with your assessment of these claims, which could have been, but was not, raised in a motion to dismiss the Complaint. Our discovery requests are proper and indispensable to proving the discrimination and other claims that we allege.

Joint Statement this Friday, October 8: You proposed reporting jointly on Friday that we are working through objections to each other's respective discovery requests. The appropriateness of that report, of course, depends on your forthcoming written proposal and any further discussions on that issue prior to Friday, and we reserve all rights, remedies, and positions.

We look forward to receiving your written proposal for staged discovery and proposed new discovery schedule promptly.

Sincerely,


Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

cc: Michael Scanlon (michael.scanlon@klgates.com)
Ifigenia Xanthopoulou (ifigenia.xanthopoulou@klgates.com)

EXHIBIT 6

October 7, 2021

John Longstreth
Partner
john.longstreth@klgates.com

T +1 202.661.6271

Via Email

Matthew J. Reynolds
Huth Reynolds LLP
7800 Grampian Court,
Chesterfield VA 23838
E-Mail: reynolds@huthreynolds.com

Re: MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA, Docket No. 21-05 (Fed. Mar. Comm'n)

Dear Matt,

In our meet and confer session yesterday afternoon, you asked us to provide for your consideration written clarification of a proposal we advanced for an initial limited production that we believe would vastly streamline the discovery in this case. We agreed to do so. We were, therefore, surprised to receive your letter mischaracterizing our discussion and arguing that any proposal to limit the time and expense of discovery along the lines we discussed somehow violates the Commission's discovery rules.

Consistent with our agreement yesterday, we write to outline our proposal for a staged and proportionate discovery procedure that makes sense for this case. We believe our proposal is entirely consistent with the letter and spirit of the Commission's discovery rules.

Despite considerable media attention regarding the allegations made by your client that MSC was engaged in some kind of conspiracy with COSCO through its FMC-filed and supervised alliance agreements (MSC does not have an alliance or any other kind of agreement with COSCO) to wrongfully deny MCS carriage and force it into the spot market, allegations that were not actually plead in the complaint, we think this case is relatively simple.

Both parties agree MCS has a service contract with MSC. MCS claims that MSC has not carried all the cargo it should have under the contract during the three-month period between May 2021 and July 2021. MCS concedes that this alleged problem applies primarily in one port range (Qingdao), that MSC has fully complied with MCS' interpretation of the service contract at another port range (Fuzhou), with a third port range falling somewhere in the middle (Tianjin).

As we have stated repeatedly, we do not understand why MCS did not raise these issues through normal business channels via informal communications or a demand letter before launching a media campaign or filing a formal complaint, but it did not. Consequently, we must now deal with MCS's unsupported allegations of Shipping Act violations in a litigation context.

After MSC received your complaint, it reviewed the matter and concluded based on its initial investigation that it had fully complied with its contractual obligations. MSC had carried cargo that was properly booked and tendered. On voyages where MSC had not carried MCS cargo, MCS or its agents had either not attempted to book any cargo for that voyage or had done so improperly, for example by doing so too late.

To better understand the basis of your complaint and the nature of the issues in this case we have repeatedly asked you, both in the settlement context and otherwise, to provide details as to specific transactions in which MCS alleges that it properly booked or attempted to book cargo with MSC and MSC wrongfully refused to carry it.

Your letter suggests that you provided such information in an email to us on September 1, 2021. That is false. As explained in our email response on September 7, 2021, the information provided was not responsive to the information we requested or that you committed to provide. The information provided did not allow us to properly investigate the allegations made in your Complaint, because it failed to include any information that would enable our client to identify particular transactions in which your client timely and properly attempted to book space allocated to it under its contract with MSC, and that the request was not honored in some fashion that would constitute a breach of contract (or a violation of any of the Shipping Act provisions you have attempted to plead). Rather that email simply repeated MCS' position that cargo had been carried at some ports but not others. You stated in our call yesterday that MSC might properly have asked for such information in the CADRS context; we did and you refused to provide it.

Given the relatively simple nature of this case and the unique litigation posture, we think a staged, proportionate discovery to help narrow the issues is prudent. Specifically, we are proposing the following approach to limit the time and expense of discovery in this case:

1. Each party provides copies of what it believes to be the operable contract and any amendments thereto, such as the agreements as to weekly allocations for specific port ranges; and
2. MCS identifies some representative number of transactions in which it alleges it properly booked or attempted to book cargo and it was not carried so that both parties can exchange the information they have on these transactions.

The advantages of such an approach are obvious. For example, if the only apparent dispute is a factual one as to whether rejected bookings were in fact timely made, a host of other issues will become irrelevant.

You object that this procedure is not provided for under the rules. We disagree. Discovery can be structured in a manner that allows for a just, speedy, and inexpensive resolution of the matter, and providing of phased discovery is well within the rules and sound practice. Indeed, Judge Wirth directed the following in another pending case:

The parties are encouraged to identify ways to limit the time and expense associated with this proceeding. Specifically, the parties are instructed to discuss whether there are facts to which they could stipulate, whether it would be helpful to initially limit discovery (for example to a limited geographic area or time period), and whether it would be helpful to conduct limited discovery prior to filing a motion seeking summary decision, with additional discovery permitted if the motion is denied.

You also raised a concern about timing. We do not believe the limited initial discovery we have proposed will be at all time-consuming, and propose it be completed by October 22, 2021. We assume you already have the information on specific bookings or attempted bookings because that information was the basis of your complaint. Accordingly, we believe that this initial staged production can be accommodated within the existing schedule if the parties proceed in good faith. For the same reasons, we do not think the overall schedule needs to be amended at this time. We believe that approaching discovery in this manner will speed rather than delay the process as it will become far more efficient.

The remainder of your letter consists of characterizations of our discussion, some of which are accurate and some of which are not, and a reservation of your rights as to a report to the Judge this Friday. You are correct that we consider the vast majority of the discovery you have requested, including requests for all documents on cargo capacity for

every sailing in the date in the date range, rates charged to other shippers under confidential service contracts, nonpublic financial information and ownership interests in MSC to be irrelevant, burdensome, duplicative, harassing, and unnecessary.

Finally, you raise the matter of a confidentiality order. As we noted, one advantage of the limited initial production we have proposed is that much or all of the information exchanged would not implicate confidentiality concerns. You have nonetheless asked that we take time to address the matter now. Attached is a copy of an order entered in another Commission proceeding that you can look at as a model.

We look forward to your response to our proposal.

Sincerely,

/s/ John Longstreth

John Longstreth

cc: Karl Huth (huth@huthreynolds.com)

Sara Wilcox (swilcox@huthreynolds.com)

Encls:

EXHIBIT A

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

STIPULATION & SECOND AMENDED ORDER OF CONFIDENTIALITY

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Confidential Information”

(defined below), including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Confidential Information. These materials shall be referred to hereinafter as “Proceeding Material.” A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this Proceeding shall be referred to hereinafter as a “Producing Party.” A Party to this Proceeding that receives Proceeding Material shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material it produces as “Confidential” when it reveals or reflects:
 - a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
 - b. private or confidential personal information;
 - c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
 - d. information that is not publicly-known, that is not in the public domain, or that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.

Definition of Outside Counsel Eyes Only Information

2. Each Producing Party shall have the right to designate information or Proceeding Material it produces as Outside Counsel Eyes Only (“Confidential OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the competitive business interests or the privacy interests of the Producing Party or an individual or entity identified in that Proceeding Material.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

General Provisions

4. All Producing Parties designating Proceeding Material as Confidential and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR § 502.141(j)(1)(vii).

5. Confidential Information disclosed by a Producing Party shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

6. The distribution and dissemination of any information designated as Confidential is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;

- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. The distribution and dissemination of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and outside co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

8. Notwithstanding any provisions herein to the contrary:

- a. Proceeding Material designated as Confidential OCEO shall not be shared with a Receiving Party's officer, manager, Board Member, employee, associational members of a Receiving Party, or with a known competitor (including, without limitation, current owners, shareholders, members, employees, officers, directors, or affiliates) of a Producing Party; and,
- b. Confidential Information produced by a non-party that is an Intermodal Equipment Provider shall not be disclosed to any current owners, shareholders, members, employees, officers, directors, or affiliates of a competing Intermodal Equipment Provider including, for the avoidance of doubt, Direct ChassisLink, Inc., FlexiVan Leasing, LLC, Interpool, Inc. d/b/a TRAC Intermodal, and North American Chassis Pool Cooperative.

9. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information against unauthorized or inadvertent disclosure, and shall limit access to Confidential Information to those persons identified above in Paragraphs 6 or 7.

10. Persons identified in Paragraphs 6(c), (d) and 7(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

11. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Order of Confidentiality, shall promptly: (a) notify the ALJ and the Producing Party of the unauthorized disclosures, (b) use its best efforts to retrieve all copies of the disclosed Confidential Information, (c) inform those to whom unauthorized disclosures were made of all the terms of this Order of Confidentiality, and (d) request such person or persons to execute the Certification form annexed at Appendix A. Thereafter, the

Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

12. The Parties shall either destroy all Proceeding Material designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five (45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

13. Unless otherwise ordered or agreed to by a Producing Party with respect to that Producing Party's Proceeding Material, this Order shall remain in force after the final conclusion of this Proceeding by settlement or final judgment not subject to further appeal for a period of two years.

Privileged and Protected Material

14. The Producing Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

15. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

16. Within forty-eight (48) hours of the receipt of a written notice from a Producing Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as

confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

Use of Confidential Information in Commission Hearings

17. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

18. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

Designating Protected Material

19. Documents containing Confidential Information as defined in Paragraphs 1, 2, and 3 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information. Parties shall take reasonable steps to ensure that copies of such documents marked “Confidential” or “Confidential OCEO,” and extracts, summaries and compilations therefrom to be used in this Proceeding, shall also be so marked.

20. Where a Producing Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents or which adequately describes the electronic documents, which comprise Confidential Information. Electronic files and documents produced in native format may be marked by using “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on placeholders in the Producing Party’s document production.

21. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy. Unless otherwise agreed by the Producing Party, a transcript shall be treated as Confidential OCEO until the expiration of the ten-day period. Counsel that introduce Confidential Information of a Producing Party that is a non-party at a deposition shall ensure that deposition exhibits and testimony containing such Confidential Information and any documents are designated as Confidential or Confidential OCEO in accordance with the designation by the Producing Party.

22. Any Producing Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

23. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

24. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

25. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party’s Counsel.

26. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

27. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential or Confidential OCEO designation thirty (30) days after the date of the letter referred to in Paragraph 25.

Reservation of Rights

28. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential Information disclosed under protection of this Order of Confidentiality.

29. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Confidential Information pursuant to such process without first giving that Producing Party notice for an opportunity to seek an order governing disclosure of the requested information. The Producing Party shall have the sole burden of defending against such request.

DATED: June 3, 2021

APPENDIX A

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

DOCKET NO. 20-14

**CERTIFICATION TO BE BOUND BY STIPULATION
AND ORDER OF CONFIDENTIALITY**

I, _____ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 6 or 7 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

Signature

Printed Name

EXHIBIT 7

October 7, 2021

By Email

John Longstreth, Esq.
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006
john.longstreth@klgates.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm'n)

Dear John:

We are in receipt of your letter dated today proposing an additional discovery stage in which you propose that my client, Complainant MCS Industries, Inc. ("MCS"), identify and produce documents to you and your client MSC Mediterranean Shipping Co. SA ("MSC") as a prerequisite to MSC's compliance with MCS's September 24, 2021 Requests for Production of Documents and Electronically Stored Information. Unfortunately, your letter reproduces the same mischaracterizations of MCS's claims and the same vague demands for information that we sought to resolve on our October 5 call.

You continue to spuriously complain about antitrust and conspiracy claims against MSC, despite multiple conversations and prior correspondence in which we have made clear to you and your co-counsel that MCS's complaint alleges no causes of action under U.S. antitrust laws. The media's reporting on and characterization of MCS's claims is not relevant to the claims, defenses, or conduct of this litigation, and raising that issue in every call and communication does not serve any purpose.

Similarly, you claim that MCS did not raise these issues through normal business channels prior to filing its complaint. This is patently false. MCS did — unsuccessfully — seek redress through business channels. Enclosed with this letter are communications between MCS and MSC personnel in which MCS repeatedly raised the ongoing problems with receiving its contracted space allocations on MSC's sailings from the ports of Qingdao and Tianjin.

More fundamentally, your proposal that MCS identify “some representative number of transactions in which it alleges it properly booked or attempted to book cargo” improperly narrows the gravamen of MCS’s complaint to an issue of poor communication or failure to comply with the technicalities of the booking process on a few occasions. MCS and the intermediaries through which it communicated did not suddenly forget how to book space on cargo ships. To the contrary, MCS has been successfully shipping cargo with multiple carriers, including MSC, for years, and has continued to successfully ship cargo with multiple carriers, including MSC, since filing its complaint, without changing its practices.

MCS’s complaint is that, despite having a service contract with a transportation commitment from MSC to carry a minimum quantity of MCS cargo in shipments reasonably spread throughout the term of the service contract, and despite MCS and its agent, Expeditors International, following the same procedures and practices that were in use prior to May 2021 (and, we understand, continue to be in use today), MCS was unable to secure a single booking that actually resulted in carriage of MCS cargo out of the Qingdao port from May through July 2021, and secured substantially less than its contractual allocation out of the Tianjin port in May and June 2021. These shortfalls by MSC have disrupted MCS’s business operations and caused MCS to seek carriage on the spot market at substantially higher cost than its contractually agreed prices with MSC. MCS has alleged on information and belief that MSC has benefitted from its failure to carry MCS cargo, including by selling space that should have been allotted to MCS on the spot market and/or giving preferential treatment to other shippers. MCS seeks redress for its injuries flowing from MSC’s alleged conduct in violation of the Shipping Act, no more and no less.

Your assertion that we have refused to provide information is again false. The conduct at issue is not merely a discrete series of booking requests and refusals, but instead a course of conduct in which MSC did not provide contracted space, and in some cases did not even provide the information or confirmations needed to begin the booking process from week to week. As I reminded you on our call this week, on September 1, 2021 I emailed you detailed information identifying the relevant ports, time periods, MQC allocations, and actual space released by month—information that was more than sufficient to focus your inquiries with your client. We have repeatedly emphasized—and continue to emphasize—our interest in facilitating a more detailed discussion among businesspeople from our respective clients to resolve these issues, whether in the context of a CADRS mediation or otherwise.

Your proposal that limited “transaction”-level discovery is somehow necessary for MSC to understand why MCS has brought this complaint and must be completed before MSC responds to MCS’s Requests for Production strains credulity in light of the straightforward nature of MCS’s complaint and the additional details that we have already provided in our several discussions and email exchanges. As I noted on our most recent call and my prior letter, your proposal is also incompatible with the discovery schedule to which you previously agreed, which contemplates substantial completion of document productions in response to initial RFPs by November 5 and the completion of fact depositions by December 13. MCS is entitled to seek the full range of discovery relevant to its allegations within the time frame to which you agreed on behalf of MSC.

We therefore cannot agree to the vague proposal in your letter from this morning and do not think that such an additional, pre-discovery process is required or appropriate.¹ However, to eliminate this issue as a claimed obstacle to MSC’s ability to make a fulsome production of non-privileged documents responsive to MCS’s RFPs by November 5, 2021, enclosed with this letter are twelve email threads that exemplify the communications between our respective clients and intermediaries, including several direct communications between MCS and MSC raising the issues that are the subject of MCS’s complaint, some of which we have excerpted below. In addition, below is information concerning booking requests and booking confirmations that we understand were not honored:

- April 9, 2021 email from MCS to MSC: “Please share with the team as the space promised per week is not being accepted for the first week of May / any of May that I am aware of at this time.”
- Booking confirmations 177OJNQN2543VFB, 177OJNQN2542VFB, and 177OJNQN2541VFB issued April 9, 2021 pursuant to booking requests 52Y0138368, 52Y0136421, and 52Y0136447, respectively, for the vessel Cap San Vincent.
- Request on May 8, 2021 to use still-pending booking confirmations 177OJNQN2543VFB, 177OJNQN2542VFB, and 177OJNQN2541VFB.

¹ As a point of clarification, we have never claimed that a staged discovery schedule would violate the Federal Maritime Commission’s Rules of Practice and Procedure, only that nothing in those rules allows a party to demand preliminary discovery as a prerequisite to full discovery, and that we do not think such a demand is appropriate or necessary in this case.

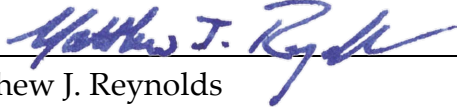
- May 12, 2021 email from MSC to MCS: "I'm pushing for your allocation to be met. I'll revert soonest".
- May 20, 2021 email from MCS to MSC: "Based on our Week 20 Booking Reports, I do not see any bookings made with MSC. If this is not accurate please advise what bookings have been made. I need an update asap on why we have not had any bookings and what we can expect in the next week or two. This is very concerning for our business, any information would be appreciated."
- July 2, 2021 email from MCS to MSC: "I was hoping to see better numbers for TEU's shipping in June. We only got 33% of our June monthly TEU allocation (61 TEU's monthly) and 4.5 in May. As of June YTD we should be at 17% and we are only 3%!! We **DESPERATELY** need the space that we contracted for, any help on this would be appreciated."
- July 7, 2021 email from MSC to MCS: "You should be getting allocation or close to it. Are they refusing both those other origins?"
- July 8, 2021 email from MCS to MSC: "I need an update on this? Can you please send me a weekly booking report? I need to see what you are booking for us on a regular / weekly basis."
- Booking confirmations 177OJNQNQ4897VFB, 177OJNQNQ4896VFB, and 177OJNQNQ4895VFB issued July 8, 2021 pursuant to booking requests BK05160297, 52Y0136442, and 52Y0136457 for the vessel Cap San Juan.
- July 21, 2021 email from MCS to MSC regarding the lack of confirmation of the above bookings: "can you please look into this and advise back? We need the space!"
- Booking confirmations 177OJNQNQ4917VFB, 177OJNQNQ4918VFB, and 177OJNQNQ4919VFB issued July 21, 2021 (subsequently re-booked for the vessel Maersk Guayaquil).
- August 10, 2021 email from MCS to MSC: "I was hoping to see better numbers of TEU's shipping for May, June and July. As of July we should be at 25% of the TEU allotment and we are only 8%!! We **DESPERATELY** need the space that we contracted for and we need a guarantee that we will get our contracted space going forward."

- September 20, 2021 email from MCS to MSC: "Through August based on our MQC divided 52 weeks- we are behind by approx. 60 containers. We would like to be able to catch up with these missed volumes in the next couple months. We have plenty of cargo to book out of Qingdao and Tianjin."

I should note that we are voluntarily sharing these documents with you, in advance of any discovery obligation on our part, simply to clear up your purported confusion regarding the nature of MCS's claims. There is no reasonable basis to dispute that MCS requested space, that MSC failed to provide space, and that MSC instead awarded space to other shippers, whether pursuant to service contracts or via the spot market. Discovery is necessary to uncover the nature of and rationale for MSC's actions, and is directly relevant to MCS's claims, which include claims of discrimination and unfair practices prohibited by the Shipping Act.

In light of the above and attached, we expect that both parties will proceed with discovery, including the service of written objections and responses to requests for productions and interrogatories and the production of responsive, non-privileged documents, as contemplated in the current scheduling order. Since you declined to discuss on our October 5 call MSC's objections to any of our specific Requests for Production, if there are any categories of documents or information that you intend to refuse to produce, please let us know as soon as possible, and in no event later than Wednesday, October 13, 2021, to allow time for the filing and resolution of a motion to compel within the time constraints imposed by the current discovery schedule.

Sincerely,


Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

Enclosures

cc: Michael Scanlon (michael.scanlon@klgates.com)
Ifigenia Xanthopoulou (ifigenia.xanthopoulou@klgates.com)

EXHIBIT 8

October 13, 2021

John Longstreth
Partner
john.longstreth@klgates.com

T +1 202.661.6271

Via Email

Matthew J. Reynolds
Huth Reynolds LLP
7800 Grampian Court,
Chesterfield VA 23838
E-Mail: reynolds@huthreynolds.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm'n)

Dear Matt:

This letter responds to yours dated October 7, 2021, responding to our letter of the same date proposing to structure discovery so as to limit the time and expense by limiting it to the matters that are truly at issue in this case (in contrast, your complaint includes allegations of opportunities for collusion and the exercise of market power among alliance members that were not tied to any of your actual claims and that you have since walked away from). Specifically, we have outlined an approach that appropriately focuses discovery on the core factual dispute among the parties, whether MSC has complied with its contractual obligations and the circumstances under which you allege MSC has failed to carry timely and properly booked MSC cargo, if any, under the service contract for cargo originating in the Qingdao port from May through July 2021 and for the Tianjin port from May through June 2021.

We appreciate your providing some specific information along these lines. Your October 7 letter identifies three sets of booking requests for carriage from Qingdao, China to the U.S. West Coast. Our review of these transactions confirms that the bookings were not properly or timely made or that the booking was made on a sailing that was necessarily voided due to port congestion issues. Detailed explanations follow:

April 2021: Improper Bookings Under Service Contract Not in Force

You cited the following transactions in your October 7 letter:

- “Booking confirmations 177OJNQNQ2543VFB, 177OJNQNQ2542VFB, and 177OJNQNQ2541VFB issued April 9, 2021 pursuant to booking requests 52Y0138368, 52Y0136421, and 52Y0136447, respectively, for the vessel Cap San Vincent.”

MSC’s booking records confirm that an initial booking request was made on April 9, 2021 for the scheduled sailing of the vessel Cap San Vincent, voyage number 112N, departing Qingdao on April 30, 2021. MSC’s booking records also confirm that these booking confirmations were subsequently cancelled because MCS attempted to book this cargo under the now-current service contract (SCV No. 21-104TPC), but that service contract was not effective until May 1, 2021. The requested cargo was not properly booked because MSC cannot accept bookings under the wrong service contract for a variety of commercial and regulatory reasons, including protection against bookings that could violate the FMC service contract filing requirements.

- “Request on May 8, 2021 to use still-pending booking confirmations 177OJNQNQ2543VFB, 177OJNQNQ2542VFB, and 177OJNQNQ2541VFB.”

MSC cannot confirm that MCS or its agents made a request on May 8, 2021. There is no record of a booking request on that date and MCS has not provided any information, such as a booking request number or a record of the claimed request, to validate the claim. It is also not clear in this context what it means to state the request related to “still-pending booking confirmations.” Again, the MSC records confirm the booking confirmations with those numbers were cancelled because MCS booked with the wrong SCT code, and the sailing related to these booking numbers was scheduled to depart (April 30) more than a week before this alleged request (May 8).

July 2021: Late Booking Request

You cited the following transactions in your October 7 letter:

- “Booking confirmations 177OJNQNQ4897VFB, 177OJNQNQ4896VFB, and 177OJNQNQ4895VFB issued July 8, 2021 pursuant to booking requests BK05160297, 52Y0136442, and 52Y0136457 for the vessel Cap San Juan.”

MSC’s booking records confirm that an initial booking request was made on July 8, 2021 for the scheduled sailing of the vessel Cap San Juan, voyage number 128N, departing Qingdao on July 14, 2021. MSC’s booking records also confirm that these booking confirmations were subsequently cancelled because MCS did not timely make this booking.

Section 4.3 of the Ocean Carrier Agreement between MSC and MCS Industries, Inc., states:

[t]he Shipper shall provide the Carrier with seven (7) days booking notice prior to vessel's cut-off of its space requirements for shipments tendered under this Agreement. If the Shipper offers any shipments to the Carrier with a shorter notice, the Carrier may accept such shipments for the requested sailing date, always subject to space and equipment availability.

MCS did not submit the booking with seven days advance notice prior to the vessel cut-off time, in fact, in this instance the booking was not even made seven days before the estimated departure date; therefore, the booking was cancelled as untimely under the terms of the service contract.

August 2021: Voided Sailing

You cited the following transactions in your October 7 letter:

- “Booking confirmations 177OJNQNQ4917VFB, 177OJNQNQ4918VFB, and 177OJNQNQ4919VFB issued July 21, 2021 (subsequently re-booked for the vessel Maersk Guayaquil).”

MSC's booking records confirm that an initial booking request was made on July 21, 2021 for the scheduled sailing of the vessel MAERSK EVORA, voyage number 133N, departing Qingdao on August 18, 2021. MSC's booking records also confirm that these booking confirmations were subsequently cancelled because of a voided sailing. Announcements of voided sailings are sent in the ordinary course to all booking and handling agents in advance. The notice of the voided sailing includes an explanation that the sailing could not be completed as scheduled due to global supply chain disruptions caused by port congestion on the U.S. West Coast. MSC also provided notice that a vessel swap would take place from MAERSK EVORA (133N) to MAERSK GYUAYAQUIL (133N), departing Qingdao on August 25, 2021. MSC does not have any record of MCS attempting to rebook on the alternate sailing.

In summary, MSC's records confirm that the April 2021 booking requests were cancelled because the cargo was not properly booked, the July 2021 booking requests were cancelled because the bookings were not timely made, and the August 2021 booking requests were cancelled because the sailing was voided due to well-documented disruptions in the ocean supply chain caused by port congestion on the U.S. West Coast. MSC has no obligation under the service contract or otherwise to carry cargo that MCS fails to properly or timely book or that cannot be carried due to disruptions in the ocean supply chain beyond either parties' reasonable control. Accordingly, these bookings cannot serve as the basis of MCS's claim that MSC has not fulfilled its contractual obligations or any of the violations of the

Shipping Act you have alleged on the basis that MSC has intentionally and willfully failed to do so.

MCS has previously suggested that it requested a total of 15 FEUs of space from Qingdao and 15 FEUs of space from Tianjin in May 2021, 12 FEUs of space from Qingdao and 5 FEUs of space from Tianjin in June 2021, and 12 FEUs of space from Qingdao in July 2021 that were not carried by MSC. Therefore, there are only a maximum possible number of 59 separate booking requests that need to be reviewed; more likely, as with the initial, representative examples you provided, a single booking request will capture multiple FEUs, so there may only be a fraction of that number of booking requests that can quickly be reviewed. We continue to believe that initial discovery limited to these transactions and any relevant contractual provisions is the only rational way to approach discovery in this case.

The selected email threads included in your October 7 letter were less helpful. The majority of the email communications relate to bookings for cargo out of the Fuzhou port. This is odd because you have repeatedly confirmed that MSC carried all of MCS's requested cargo from Fuzhou port. Accordingly, the emails referencing cargo issues from Fuzhou are at best irrelevant and potentially misleading.

We also disagree that the selective excerpts from the email threads included in your October 7 letter provide an accurate portrayal, much less exemplify, the communications between the parties because, among other reasons, the excerpts you included omit emails showing MSC's good faith investigation of the issues raised by your client. The emails do, however, highlight a clear issue between MCS's booking and handling agents. We suspect that communication breakdowns among MCS and its agents have contributed significantly to MCS's unsupported allegations that MSC failed to comply with its obligations under the service contract. This is yet another reason why we think working through the actual bookings requests and booking confirmations is necessary to focus the issues in this case.

MSC is hopeful that MCS will see the value in discovery structured to limit the time and expense associated with this proceeding. We are also hopeful that this prompt exchange on your initial, representative bookings information will resolve any concerns about timing. Accordingly, we renew our proposal that both parties commit to produce within an expedited timeframe (2 weeks): (1) copies of the operable contract and any amendments thereto, such as the agreements as to weekly allocations for specific port ranges; and (2) all booking requests and booking confirmation information for MCS cargo from Qingdao port from May through July 2021 and from Tianjin from May through June 2021 that MCS alleges it properly booked or attempted to book and was not carried, so that both parties can exchange the information they have on these transactions.

Again, the advantages of such an approach are obvious. If, as the initial examples confirm, MSC did not carry certain MCS cargo for reasons that are justified or excused under the service contract, there can be no breach of contract and, by extension, no other possible violations of the Shipping Act.

If we cannot agree on a rationale discovery approach and MCS files a motion to compel, MSC will consider filing its own motion to limit the scope of the initial production to those matters directly related to the allegation that MSC “failed to provide . . . contractually agreed-upon space,” and deferring consideration of the other items MCS alleges are relevant to its claims based on that alleged failure.

We look forward to your response.

Sincerely,

/s/ John Longstreth

John Longstreth

cc: Karl Huth (huth@huthreynolds.com)

Sara Wilcox (swilcox@huthreynolds.com)

EXHIBIT 9

October 18, 2021

By Email

John Longstreth, Esq.
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006
john.longstreth@klgates.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm’n)

Dear John:

Thank you for your letter of October 13, 2021. I write to respond to and correct certain of your assertions in that letter, and to provide you with one further opportunity to disclose which categories of documents or information responsive to MCS Industries, Inc.’s (“MCS”) September 24, 2021 Requests for Production of Documents and Electronically Stored Information (the “RFPs”) you intend to refuse to produce before we proceed with the filing of a motion to compel your client MSC Mediterranean Shipping Co. SA (“MSC”) to comply with those RFPs. As you know, Chief Administrative Law Judge Wirth’s September 23, 2021 Scheduling Order, like the Joint Status Report filed on September 20, 2021, contemplates the substantial *completion* of productions of documents and ESI by both parties by November 5—approximately three weeks from now—and the commencement of fact depositions thereafter. To the extent your October 13 letter reiterates your proposal to interpose an additional, limited discovery phase not contemplated by either the Scheduling Order or the Federal Maritime Commission’s Rules of Practice and Procedure, we have already explained why that proposal is neither appropriate to this case nor feasible within the current case schedule.

Your letter, like the proposal it appears to reiterate, continues to rely on a *fundamental mischaracterization of the nature of MCS’s causes of action in this case*. It is the plain language of MCS’s complaint that determines “the matters that are truly at issue in this case”, not your or your client’s preferred, limited interpretation of it. This case is not merely about “whether MSC has complied with its contractual obligations and

the circumstances under which [MCS] allege[s] MSC has failed to carry timely and properly booked MSC cargo". Instead, it is about whether MSC's conduct:

- "constitutes failures . . . to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of MCS and other shippers" (Compl. ¶ 46);
- "constitutes provision of service in the liner trade that is not in accordance with the rules and practices contained in its respective service contract with MCS, for which no exception or exemption applies and that has not been suspended or prohibited by the FMC" (Compl. ¶ 48);
- "constitutes an unfair and unjustly discriminatory practice against MCS in the matter of rates or charges with respect to the ports identified in each respective service contract" (Compl. ¶ 50);
- "gives undue and unreasonable preference and advantage to shippers other than MCS and imposes an undue and unreasonable prejudice and disadvantage to MCS with respect to the ports identified in each respective service contract" (Compl. ¶ 52); and
- "in the course of negotiating its service contract with MCS and providing service to MCS pursuant to that service contract, which is continuous and ongoing, constitutes unreasonable refusal to deal or negotiate with MCS" (Compl. ¶ 54).

Although we appreciate the information you provided in your October 13 letter, that information obviously represents only a fraction of the documents and information relevant to the above causes of action in this case and does not by itself, in form or in substance, satisfy any of MCS's RFPs or interrogatories. Moreover, as you no doubt already know, the information you have provided does not tell the entire story, with respect to either the specific booking examples discussed or MSC's course of dealing with MCS as a whole.

With respect to MSC's issuance and subsequent cancellation of MCS's booking confirmations in April 2021, as you have already seen from the documents that we provided with our October 7, 2021 letter, MCS engaged directly with MSC about the issue of potentially booking under MCS's prior service contract number (which could have entailed costly amendment fees if the sailing was pushed into May 2021) and *MSC's*

response was to provide the new (current) service contract number. Moreover, we expect discovery will show discussion of the possibility or fact that the sailing at issue—the Cap San Vincent’s voyage number 112N—would not actually depart until May 2021, i.e., within the term of the *current* service contract.

With respect to MSC’s issuance and subsequent cancellation of MCS’s July 2021 booking confirmations, the discussion in your October 13 letter actually corroborates the allegations in MCS’s complaint. To wit: “Just this month, for example, MSC issued a booking confirmation, and subsequently provided vessel information for the booking, but then, days later, claimed that their sales staff was still working on space allocation, and ultimately refused to release the booked space to MCS” (Compl. ¶ 44).

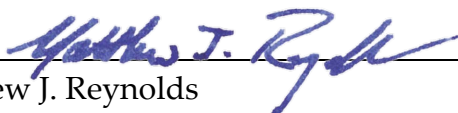
We agree that discovery of MSC’s documents, communications, and information surrounding its service contract with MCS, its issuance of any booking confirmations to MCS, its subsequent cancellation of any such booking confirmations, and its ultimate allocation of space on its voyages from Qingdao and Tianjin (and from Fuzhou, if MSC fails to continue allocating MCS its contracted space) to other shippers are all critical to MCS’s causes of action in this case and must be produced. We expect such documents, communications, and information to be included in MSC’s production targeted for November 5, 2021—or sooner if you already have such documents and communications assembled and ready for production. As the other documents attached to our October 7 letter¹ make clear, however, those are but two episodes in a broader course of conduct by MSC with respect to MCS and MCS cargo that is the subject of MCS’s causes of action, and therefore documents, communications, and information concerning that course of conduct—to which MCS’s RFPs and interrogatories have been tailored—are of equally critical relevance to this case, including in particular to MCS’s claim that MSC’s conduct constitutes unjust and unreasonable practices relating to receiving and delivering the property of MCS and other shippers.

Once again, in light of the foregoing, as well as our prior correspondence, we expect that both parties will proceed with discovery, including the service of written objections and responses to requests for productions and interrogatories and the production of responsive, non-privileged documents, as contemplated in the current

¹ Your characterizations of the documents attached to our October 7 letter as “less helpful” and “at best irrelevant” are belied by even a cursory reading of those documents, which speak for themselves and which reflect direct communications between MCS and MSC concerning their current service contract, MSC’s performance under that service contract as a whole, MSC’s statements about the shipping situation in China, and/or discussion of MSC’s failure to allocate space on particular lines, including from Qingdao and Tianjin to Los Angeles.

scheduling order. Since your October 13 letter once again failed to disclose MSC's actual objections to any of MCS's specific RFPs or propose any concrete limitations to such RFPs, we understand you are still adhering to your previously stated general objection to MCS's RFPs in their entirety. Accordingly, if we do not receive by this Wednesday, October 20, 2021 the requested details of which categories of documents or information, if any, MSC intends to refuse to produce, we will understand the parties to be at an impasse and will proceed with the filing of a motion to compel. MCS continues, of course, to reserve all rights, remedies, and positions.

Sincerely,


Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

cc: Michael Scanlon (michael.scanlon@klgates.com)
Ifigenia Xanthopoulou (ifigenia.xanthopoulou@klgates.com)

EXHIBIT 10

John Longstreth
Partner
john.longstreth@klgates.com

October 20, 2021

T +1 202.661.6271

Via Email

Matthew J. Reynolds
Huth Reynolds LLP
7800 Grampian Court,
Chesterfield VA 23838
E-Mail: reynolds@huthreynolds.com

Re: MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA, FMC Docket No. 21-05

Dear Matt:

Your letter dated October 18, 2021 requests by today “details of which categories of documents or information, if any, MSC intends to refuse to produce” pursuant to your document requests. You served those requests on September 24, 2021. MSC will provide details both as to what it agrees to produce and what it objects to producing on or before the due date for response of next Monday, October 25, 2021, as provided by the rules. Any discussions as to a motion to compel are of course at this point premature.

We have engaged with you in a meet and confer process to try to tease a relevant and efficient production out of your burdensome, duplicative, irrelevant, and harassing requests. We proposed a limited initial discovery as to the core of your claims to be completed by this Friday, but you rejected that proposal more or less out of hand. You did provide some selective correspondence as to three sets of booking requests that you claimed supported your claims; we responded to those in detail showing that they did not. Your October 18 letter does not provide a single fact or document to counter that showing, though it does repeat some familiar rhetoric while it attempts to mischaracterize MSC’s position as a refusal to provide any discovery. We are disappointed that our efforts did not yield a more productive and good faith response.

October 20, 2021

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We look forward to MCS's responses to MSC's discovery requests on or before next Monday.

Sincerely,

/s/ John Longstreth

John Longstreth

cc: Karl Huth (huth@huthreynolds.com)

Sara Wilcox (swilcox@huthreynolds.com)

EXHIBIT 11

October 28, 2021

By Email

John Longstreth, Esq.
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006
john.longstreth@klgates.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm’n)

Dear John:

We are in receipt of Respondent MSC Mediterranean Shipping Company S.A.’s (“MSC”) Responses and Objections to Complainant’s First Set of Document Requests, which you served on October 25, 2021. Following up on our now-extensive prior discussions and correspondence on MSC’s discovery obligations in this case, I write once again on behalf of Complainant MCS Industries, Inc. (“MCS” and, collectively with MSC, the “Parties”) to revisit and/or raise certain matters before proceeding with filing a motion to compel MSC to comply with MCS’s September 24, 2021 First Request for Production of Documents and Electronically Stored Information to MSC (the “Requests” and each numbered topic therein a “Request”). As you know, Chief Administrative Law Judge Wirth’s September 23, 2021 Scheduling Order, like the Joint Status Report filed on September 20, 2021, contemplates both parties substantially completing productions of their respective documents and ESI by November 5—a little over a week from now. We have repeatedly sought to address these matters prior to the formal response date to our Requests, only to find that your Responses and Objections once again improperly seek to mischaracterize and narrow the scope of MCS’s causes of action in this case. We have identified the following objections that cannot be sustained:

- Improper Limitation of Requests 5 through 15, 23, 24, 26, 27, and 29:

Each of these responses says that MSC will provide documents “[t]o the extent that documents reflect communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact

carried” (or similar wording).¹ As we have repeatedly explained, MCS’s causes of action are not limited to a few specific instances of particular bookings that were refused, cancelled, or otherwise not honored. Instead, MCS alleges that it was subjected to continuous, unjust, and unreasonable practices by MSC that had the effect of denying MCS the opportunity to book carriage from Qingdao and Tianjin in the first place and, in instances when MSC did issue bookings, cancelling or otherwise not honoring those bookings, which together resulted in MCS not receiving any of its contracted volume out of Qingdao from May through July 2021 and only part of its contracted volume out of Tianjin during that same period.

Limiting MSC’s responses to instances in which “MCS demonstrates” some kind of prima facie case improperly purports to condition *your* discovery response on some further pleading or proof on *our* part. As we have previously discussed, there is no such requirement under the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”). To the contrary, Rule 141(e), 46 C.F.R. § 502.141(e), provides that we “may obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense”, and we have tailored our Requests accordingly. You have not moved to dismiss any of MCS’s claims in this case, and you agreed to a case schedule that does not contemplate staged or limited discovery.

Moreover, the process and communications by which MCS *successfully* requested bookings is relevant to the course of dealing between the Parties, which is, of course, essential to determining MCS’s claims about the alleged unfairness, unreasonableness, and/or discriminatory or preferential nature of MSC’s conduct. In addition, this objection does not appear to properly apply to Requests 14 and 15, which do not relate to bookings or attempted bookings, at all, but instead to MSC’s invocation of *force majeure* to excuse performance under the OCA (Request 14) or any of its contracts with shippers (Request 15).

MSC must produce non-privileged documents responsive to these Requests without limitation as to particular bookings or attempted bookings or any further “demonstration” on the part of MCS.

¹ Although the objections to Request 5 do not use this phrase, you refuse to provide any documents in response to Request 5 except insofar as communications overlap with other Requests, and therefore are similarly limiting any responses thereto.

- Refusal to Produce Documents in Response to Requests 2 through 4 and 28:

You are refusing to produce documents pursuant to these Requests because you contend that the terms of the OCA are not in dispute. However, it is as of yet undetermined whether there is any dispute regarding the terms of the OCA, and in any case the negotiation of these terms is relevant to MCS's claims. The negotiation of, and the Parties' communications about, the scope of the OCA, pricing, and any pricing changes pursuant to the OCA, the MQC, and the identities of persons knowledgeable about these matters are all relevant to, among other things, the Parties' respective intentions and understanding regarding how shipping pursuant to the OCA should and would be conducted. MCS's causes of action include claims that, *inter alia*, MSC did not provide service in accordance with the OCA (*see* Compl. ¶ 48) and that MSC, "in the course of negotiating its service contract and providing service to MCS pursuant to that service contract" unreasonably refused to deal or negotiate with MCS (Compl. ¶ 54), in violation of the Shipping Act—claims that you did not move to dismiss. Accordingly, MSC must produce non-privileged documents responsive to these Requests.

- Refusal to Produce Documents in Response to Requests 17 through 19:

You claim that the unbooked or available cargo space on MSC's vessels at the times requested are "unknowable at any given time" and that the burden and expense of recreating such records would outweigh any likely benefit. We therefore request that you inform us as to the recordkeeping system(s) and practices of MSC with respect to its vessels' cargo bookings and explain why such system(s) and practices render the requested information "unknowable". We reserve the right to amend Requests 17 and 18, or to pursue production under those Requests as currently written, as appropriate in light of that information and explanation about MSC's practices. As to Request 19, MSC must, at a minimum, have bills of lading and/or other contemporaneous records of what was *actually* carried on its vessels, which should be produced these in response to that Request.

- Refusal to Produce Documents in Response to Requests 20 through 22, 25, and 30:

You refuse to produce documents responsive to these Requests because you believe the allegations that you presume they support to be "unsupported and implausible". Whatever your or MSC's belief may be with respect to MCS's claims is not a proper basis for an objection, much less a refusal to produce responsive, non-privileged documents. Again, MSC did not file a motion to dismiss any of MCS's claims in this case,

and MCS is entitled to seek discovery relevant to those claims. MSC must produce non-privileged documents responsive to these Requests.

- Refusal to Produce Documents in Response to Requests 31 through 35:

You refuse to produce documents responsive to these Requests because you contend that they call for non-public financial information that is not relevant to the Complaint. We have prepared and circulated to you a Confidentiality Stipulation and Proposed Protective Order, based on a precedent that you provided from another case before the Commission in which MSC is involved, that would address any concerns regarding production of non-public financial information. As to relevance, the financial condition of MSC, the revenues and profits MSC has made during the time period relevant to the Complaint, the corporate ownership of MSC, and the insurance available to cover any reparations and/or fees awarded in this case, are all relevant to MSC's alleged course of conduct, the alleged continuous unfairness and unreasonableness of such conduct, and MCS's claims for reparations and other relief (not to mention MSC's defenses in this case). MSC must produce non-privileged documents responsive to these Requests (and, assuming MSC agrees to the Confidentiality Stipulation and Proposed Protective Order, may designate such documents as appropriate thereunder).

- Refusal to Produce Documents in Response to Requests 36 and 37:

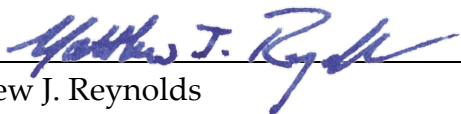
You refuse to produce documents responsive to these Requests because you contend that general document retention policy or practice is not materially relevant to this case and that any litigation hold instruction is privileged. While we acknowledge that a litigation hold notice may be a privileged communication, depending on how it is communicated, the steps that a company takes to preserve information—especially pursuant to its regular policy or procedures—are discoverable. Thus, Requests 36 and 37 are proper and, with the exception of material properly withheld pursuant to an applicable privilege, MSC must produce documents responsive to these Requests.

- Refusal to Produce Documents in Response to Request 39:

You refuse to produce documents responsive to this Request because you contend that it is not limited to matters relevant to the allegations of the Complaint. However, prior instances in which MSC has been accused of, determined, found, or adjudged to have violated the Shipping Act are, of course, relevant to whether MSC's conduct in this case can be considered an isolated incident or part of a pattern of Shipping Act violations. MSC must produce non-privileged documents responsive to this Request.

Although most of the issues discussed herein have already been the subject of prior discussion and/or correspondence between us, we are open to further discussion of your Responses and Objections to our Requests if such discussion might obviate the need for us to file a motion to compel. To that end, please let us know by tomorrow (October 29, 2021) if you would like to schedule such a discussion and provide possible times for such a discussion early next week. In the meantime, we expect that MSC will proceed with the collection of responsive, non-privileged documents for production as contemplated by the current scheduling order in this case. MCS continues, of course, to reserve all rights, remedies, and positions.

Sincerely,


Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

cc: Michael Scanlon (michael.scanlon@klgates.com)
Ifigeneia Xanthopoulou (ifigeneia.xanthopoulou@klgates.com)

EXHIBIT 12

November 3, 2021

By Email

John Longstreth, Esq.
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006
john.longstreth@klgates.com

Re: *MCS Indus., Inc. v. COSCO SHIPPING Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, Docket No. 21-05 (Fed. Mar. Comm’n)

Dear John:

We write to memorialize our November 2, 2021 teleconference, in which we conferred regarding Respondent MSC Mediterranean Shipping Company S.A.’s (“MSC”) Responses and Objections to Complainant MCS Industries, Inc.’s (“MCS” and, collectively with MSC, the “Parties”) First Set of Document Requests, which you served on October 25, 2021. We discussed the following Requests and the responses thereto:

- Responses to Requests 5 through 15, 23, 24, 26, 27, and 29:

Each of these responses says that MSC will provide documents “[t]o the extent that documents reflect communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried” (or similar wording).¹ Our disagreement regarding any requirement that MCS “demonstrate” or make any *prima facie* showing before MSC is required to produce documents is well documented, and were discussed again on our call.

You represented during our call that MSC will produce documents relating to bookings or attempted bookings by or on behalf of MCS from Qingdao and Tianjin, China from May through July 2021. You clarified that you will not exclude internal communications or communications with intermediaries regarding MCS, nor will you

¹ Although the objections to Request 5 do not use this phrase, you refuse to provide any documents under Request 5 except insofar as communications overlap with other requests, and therefore are similarly limiting any responses thereto.

limit the production to communications that include a specific booking number. We understand you will produce any communications related to efforts by or on behalf of MCS to get its contracted space with MSC from Qingdao and Tianjin, including complaints and inquiries about the lack of space, allocations, or service under MCS's service contract with MSC, whether or not related to a specific booking or attempt to book.

We discussed that, given MSC's apparent compliance thus far with its contractual service commitments to MCS with respect to carriage of MCS cargo from Fuzhou, China, documents and communications concerning MSC's carriage of MCS cargo from Fuzhou need not be produced at this time, without prejudice to our ability to renew our requests for such documents and communications depending on future developments in discovery or the case. We noted that, since it is not clear that MSC provided MCS with 100% of its contracted space in August 2021, documents and communications from August 2021 are also relevant to our claims in this case, and must be produced. You observed on the call that perhaps there is not a large difference between our request and what MSC intends to provide. *You agreed to consider including documents from August 2021 in your production, and to restate your objection to Requests 5 through 15, 23, 24, 26, 27, and 29 to more accurately reflect the scope of documents that MSC will produce.*

MCS's position, of course, is that it is entitled to all of the documents called for by these Requests. In the interest of narrowing or avoiding a formal dispute, however, we will review MSC's restated objections and initial production. MCS reserves all rights to move to compel should MSC refuse to produce documents or unduly limit the scope of its production pursuant to these Requests.

- Responses to Requests 14 and 15:

Specifically with respect to Requests 14 and 15, we noted that you have previously stated, and MSC has pled in its answer, that it will rely on global events and circumstances, specifically including *force majeure*, as a defense in this action. See Verified Answer of Respondent MSC ("Answer") at 17 ("Any alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom."). We reiterated on the call that, in light of that defense, whether MSC has invoked *force majeure* as an excuse for non-performance in relation to *any* of its contracts in 2021 is relevant. *You have agreed to consider this reasoning and revert with an updated response to these Requests 14 and 15.*

Pending your updated responses to Requests 14 and 15, MCS reserves all rights to move to compel should MSC refuse to produce documents or unduly limit the scope of its production pursuant to these Requests.

- Responses to Requests 23 and 24:

With respect to Requests 23 and 24, we explained that the phrase “any other person” in those requests is meant to capture intermediaries who may have communicated on behalf of or about MCS with MSC, and that these two Requests are limited to matters relating to “MCS Cargo” and “MCS’s space requirements.” *You have agreed that this clarification resolves your objections and that you will produce documents and communications responsive to these requests.*

We believe the disputes as to these Requests 23 and 24 are resolved, but MCS reserves all rights to move to compel should MSC refuse to produce documents or unduly limit the scope of its production pursuant to these Requests.

- Responses to Requests 26, 27, 29, and 30:

With respect to Requests 26, 27, 29, and 30, you contend that these requests are too broad because they would include persons who communicated on MSC’s behalf on an operational level with regard to MCS cargo that *was* carried by MSC pursuant to the parties’ current service contract, which you contend is outside the scope of our claims in this action. We agree that we do not require the identification of persons to the extent they communicated on MSC’s behalf concerning MCS cargo that *was* carried by MSC pursuant to the parties’ current service contract, including persons who handle freight logistics and customs processes after a shipment is accepted by MSC for carriage. You also indicated you intended to exclude persons who perform purely ministerial functions relating to the receipt of booking requests (i.e., the “call center personnel in China” to which you referred during our call). *You agreed to produce documents sufficient to identify persons who communicated directly with MCS or intermediaries concerning MCS or MCS cargo, or who made decisions or otherwise substantively acted in relation to MCS or MCS cargo.*

We expect that MSC’s production will include documents sufficient to identify all individuals with non-ministerial roles in the activities references in Requests 26, 27, 29, and 30. MCS reserves all rights to move to compel should MSC refuse to produce documents or unduly limit the scope of its production pursuant to these Requests.

- Responses to Requests 2 through 4 and 28:

You reiterated that you are refusing to produce documents pursuant to these Requests because you contend that the terms of the OCA are not in dispute. As we discussed at some length, in light of the limited time period for discovery under the Federal Maritime Commission's Rules of Practice and Procedure, MCS's Requests are tailored to capture relevant information now, without the need for second or third requests for production that may not be possible under the current case schedule. Without receiving the requested documents and communications concerning the negotiation of the OCA, the parties cannot determine if there is a dispute as to the meaning and proper interpretation of the terms of the OCA, and to the extent MCS's Complaint alleges conduct that also would constitute breaches of the OCA, and thereby constitute additional breaches of the Shipping Act (*see* 46 U.S.C. Section 41104(a)(2)), such documents and communications are clearly relevant.

You contend that producing MSC's copy of the OCA is sufficient at this time and that you will produce documents responsive to these Requests 2 through 4 and 28 should a dispute regarding the terms of the OCA arise. For the reasons previously stated, we disagree, and MCS reserves all rights to move to compel production of documents responsive to these Requests.

- Responses to Requests 17 through 19:

In our letter of October 28, 2021, we requested that you explain the record-keeping system(s) that MSC uses to track booking of space on particular sailings so that we could reformulate or agree on parameters for Requests 17 through 19 that were the least burdensome to MSC while still providing the information requested. On our call, you reiterated that providing the information would be "a huge undertaking" and too burdensome for what you believe to be minimally relevant requests, but you did not know (or did not disclose to us) what system(s) MSC uses or what the reporting capabilities of such system(s) are. *You agreed to consult with your client and provide additional information about MSC's inventory/booking system(s) and whether generating reports containing the information sought by these Requests is possible.*

MCS looks forward to receiving additional information and remains willing to agree on a process for obtaining the information called for by Requests 17 through 19 in the least burdensome manner practicable. MCS reserves all rights to move to compel should MSC refuse to produce documents or unduly limit the scope of its production pursuant to these Requests.

- Responses to Requests 20 through 22, and 25:

On our call, you maintained your position that MSC will refuse to produce documents responsive to these Requests because you believe the allegations that you presume they support to be implausible. As we have repeatedly discussed, if MSC believed that these claims could not be maintained as a matter of law, MSC could have sought to narrow MCS's claims by filing a motion to dismiss. MSC cannot now seek to achieve through discovery objections what it was unwilling to seek through motion practice at the appropriate juncture, and MSC cannot unilaterally refuse to produce non-privileged discovery that is clearly relevant to MCS's causes of action merely because MSC believes such causes of action to be legally insufficient.

It appears the Parties are at an impasse with respect to these Requests 20 through 22 and 25, and MCS reserves all rights to move to compel pursuant to these Requests.

- Responses to Requests 31 through 35:

We requested that you confirm whether the confidentiality stipulation and proposed protective order that we circulated to you a week ago resolved your concerns with respect to these Requests 31 through 35, and reiterated our understanding and willingness to treat such the requested financial information as "Confidential Outside Counsel Eyes Only" given our understanding that MSC is a privately held company that does not otherwise publicly report the requested information.

You contend that MSC's financial results and corporate organizational structure are not relevant to MCS's claims. That is not correct for at least two reasons. First, MSC has alleged in its defense that current global conditions have created substantial "difficulties" for it and other ocean carriers, *see, e.g.*, Answer ¶ 2, and has specifically "denie[d] that it has manipulated prices or obtained windfall profits by forcing shippers into an artificially inflated spot market." *Id.* ¶ 5; *see also id.* ¶¶ 15, 32 (claiming that, *inter alia*, "substantial operational challenges" to carriers are a reason for high spot market prices for ocean carriage). MSC's financial results, and the impact of these claimed "difficulties" and "challenges" on them, have been placed at issue by MSC's own claimed defenses, and are therefore centrally relevant in this case.

Second, we explained that our request for information about MSC's ownership structure—a routine request in virtually any litigation, especially those involving privately held companies based abroad—is clearly necessary for us to identify any potential barriers to discovery, including the relationship between MSC and any

affiliated entity in the United States, China, or elsewhere that may have relevant documents or communications, the ability of MSC to facilitate or require the appearance of MSC employees within the United States, China, or elsewhere for depositions or at the hearing in this case. You nonetheless continue to object to producing any documents responsive to these requests, and even declined to confirm on our call whether you will be producing documents and communications from MCS's primary contact at MSC, Thomas DeMarino, who is based in the United States and apparently employed by a U.S. affiliate of MSC.

It appears the Parties are at an impasse with respect to these Requests 31 through 35, and MCS reserves all rights to move to compel pursuant to these Requests.

- Responses to Requests 36 and 37:

You refuse to produce documents responsive to these Requests because you contend that general document retention policies or practices are not relevant to this case and that any litigation hold instruction is privileged. On the call, we reiterated that these Requests are tailored, in light of the tight discovery schedule in this case, to discover any issues with the retention of relevant documents sooner rather than later. You stated on the call that there are no problems or complicated structures that the parties would need to navigate relating to preservation or collection of documents, and that the recency of the events at issue in this matter suggest there will be no issue. You also represented that any questions MCS may have relating to the completeness of MSC's document preservation and collection efforts can be resolved at a later date.

It appears the Parties are at an impasse with respect to these Requests 36 and 37, and MCS reserves all rights to move to compel pursuant to these Requests.

- Responses to Request 39:

You contend that this Request is not relevant to the allegations of the Complaint. On the call, we explained again that MCS's Complaint alleges unjust and unreasonable practices by MSC with respect to MCS and other shippers (*see* Compl. ¶ 46), and that therefore prior or contemporaneous allegations or complaints about MSC's practices under the Shipping Act, whether pled in a formal litigation or arbitration or raised by letter, email, or other means, are directly relevant to MCS's causes of action in this case.

It appears the Parties are at an impasse with respect to this Request 39, and MCS reserves all rights to move to compel pursuant to this Request.

- Confidentiality Stipulation and Proposed Protective Order:

You inquired about our edits to paragraphs 2, 6.a., 6.f., 7.a., and 7.e. of the draft confidentiality stipulation and proposed protective order that you provided to us, and we explained the reasons for those edits. *You agreed to consider those explanations and potentially propose limited additional edits.* Given the current case schedule's target of this Friday for the parties' exchange of documents, we look forward to receiving any further edits from you or your signature on the confidentiality stipulation and proposed protective order as we sent it to you last Wednesday, promptly, so that we can proceed with the exchange of documents that merit designation under its terms.

- Production Parameters:

As we explained on our call, we plan to produce documents as Bates-numbered PDF files or in native format, and noted that, for Excel documents that cannot be readily formatted as PDFs, we plan to provide the native Excel file along with a corresponding Bates-numbered slipsheet. You indicated that you needed to check with your e-discovery team about the parameters for your own production, but indicated that Bates-numbered PDFs would be acceptable, and that you also were planning to produce documents in that format (subject to any further input from your e-discovery team).

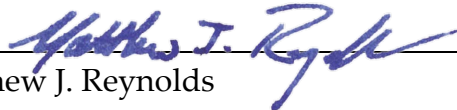
Please advise us at your earlier convenience if you will be producing documents in a different format than what we discussed on our call.

- Deposition of Richard Master:

We confirmed that the deposition of Richard Master is now scheduled for November 16, 2021, and that counsel and Mr. Master intend to participate remotely from their respective geographic locations via conference software provided by the court reporter. We understand that Mr. Master will be participating from Pennsylvania, and counsel from their respective office locations.

We appreciate yesterday's productive call, which appears to have resolved several areas of dispute or paved the way for such a resolution in the coming days. We look forward to hearing from you without delay on the matters where you agreed to provide updated objections and responses and/or additional information from your client. We expect that MSC will proceed with the production of responsive, non-privileged documents on November 5, 2021, as will MCS. MCS continues to reserve all rights, remedies, and positions.

Sincerely,


Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

cc: Michael Scanlon (michael.scanlon@klgates.com)
Ifigenia Xanthopoulou (ifigenia.xanthopoulou@klgates.com)